

11th Consultation on the 1960 Convention and Recommendation against Discrimination in Education

Survey response 1

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GENERAL INFORMATION

Country name:
PERU
Organization or entity responsible for the preparation of the report:
The Peruvian National Commission for UNESCO with the participation of: • ☐ General Directorate of Regular Basic Education of the Ministry of Education. • ☐ General Directorate of Bilingual, intercultural Alternative Basic Education and Educational Services in Rural Areas of the Ministry of Education. • ☐ General Directorate of Technical-productive and Higher Technological and Artistic Education. • ☐ Directorate of Policies for the Development and Quality Assurance of University Higher Education.
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I. Ratification and applicability of the Convention against Discrimination in Education[1]

Is your country a State Party to the Convention?
Yes
Is the Convention directly applicable in your country 's domestic law ?
Yes
Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education [1]? [1] Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.
No

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4). 1. Towards an inclusive non-discriminatory education system

Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

Yes

- If yes, please provide reference:

Sector regulations aligned to the achievement of SDG 4: Ensure inclusive, equitable and quality education and promote lifelong learning opportunities for all. Peruvian regulations are as follows:

● General Education Law N° 28044.

- [?]The purpose of the General Education Law is to establish the general guidelines for education and the Peruvian Education System, the attributions and obligations of the State, and the rights and responsibilities of individuals and society in their educational role. It governs all educational activities carried out within the national territory, developed by natural or juridical, public or private, national or foreign persons.

- [?]Article 8. Principles of education states that: "Peruvian education has the person as the center and fundamental agent of the educational process". And among its principles are: b) Equity, which guarantees equal opportunities of access, permanence and treatment to all in a quality education system".

- [?]Link: https://www.minedu.gob.pe/p/ley_general_de_educacion_28044.pdf

● Supreme Decree No. 011-2012 Approving the Regulations of Law No. 28044 - General Education Law.

- [?]This Regulation develops the provisions, criteria, processes and procedures contained in Law No. 28044, General Education Law, which establishes the general guidelines for education and the Peruvian Education System, and regulates the powers and obligations of the State, as well as the rights and responsibilities of individuals and society in their educational function. It governs all educational activities carried out under the scope of the Law, within the national territory, at different levels of government, by natural or juridical, public or private, national or foreign persons.

- [?]In its article 6.- Planning: establishment of regional goals and strategies for universalization, it states that: "Some aspects to be considered for the achievement of regional universalization goals are: (...) c) Preventive and compensatory measures to reverse situations of inequality through intersectoral actions that guarantee equal opportunities and the achievement of the results of the educational service".

- [?]Link: <https://www.gob.pe/institucion/minedu/normas-legales/118256-0011-2012-ed>

● Supreme Decree amending the Regulation of Law No. 28044, General Education Law, approved by Supreme Decree No. 011-2012-ED.

- [?]Link: <https://busquedas.elperuano.pe/dispositivo/NL/1951686-1>

● University Law and its amendments Law N° 30220

● National Education Project, PEN 2036: the challenge of full citizenship.

- [?]The PEN is the strategic framework that guides decisions leading to the development of public policy in education (Art. 7° LGE).

- [?]It indicates that "Achieving the vision also implies that in the country we achieve various purposes, from different sectors and areas, among which are: (...) 2. to face the great challenges related to ensuring that the right to education is exercised by ALL PEOPLE, that is, that we effectively face the challenges related to inclusion and equity, leaving in the past the reproduction of the current segregation and the inability of the education system to create equal opportunities (...)".

- [?]Link: <https://repositorio.minedu.gob.pe/handle/20.500.12799/6910>

● Ministerial Resolution No. 281-2016-MINEDU approving the National Curriculum for Basic Education whose approaches contemplate the rights and principles of the Convention.

- [?]The National Curriculum for Basic Education (CNEB) establishes the learning that students are expected to achieve as a result of their basic education, in accordance with the aims and principles of Peruvian education, the National Education Project and the objectives of Basic Education.

- [?]The CNEB also has several cross-cutting approaches for the development of the graduate profile, promoting equal opportunities in education:

1. [?]Rights-based approach. It starts by recognizing students as subjects of rights and not as objects of care, that is, as people with the capacity to defend and demand their legally recognized rights (...).

2. [?]Inclusive Approach or Attention to Diversity. Today no one disputes that all girls, boys, adolescents, adults, and young people

have the right not only to educational opportunities of equal quality but also to obtain learning results of equal quality, regardless of their cultural, social, ethnic, religious, gender, disability status or learning styles (...).

3. **Intercultural Approach.** In the context of the Peruvian reality, characterized by socio-cultural and linguistic diversity, interculturality is understood as the dynamic and permanent process of interaction and exchange between people from different cultures, aimed at coexistence based on the agreement and complementarity, as well as respect for one's own identity and differences (...).

4. **Gender Equality Approach.** All people have the same potential to learn and develop fully. Gender equality refers to the equal valuation of different behaviors, aspirations, and the needs of women and men. In a situation of real equality, people's rights, duties, and opportunities do not depend on their gender identity and, therefore, everyone has the same conditions and possibilities to exercise their rights, as well as to expand their capabilities and opportunities for personal development, contributing to social development and benefiting from its results (...).

- **Link:** <https://www.gob.pe/institucion/minedu/normas-legales/169249-281-2016-minedu>

● Ministerial Resolution N.º 649-2016-MINEDU that approves the Curricular Program for Early Education, the Curricular Program for Primary Education and The Curricular Program for Secondary Education.

- **These programs** are intended to contribute with specific orientations, according to the characteristics of the students of each educational level, in the process of concretization of the National Curriculum in the educational institution.

Link: <https://www.gob.pe/institucion/minedu/normas-legales/169571-649-2016-minedu-parte-1>

Regarding adult education:

- Articles 30 and 68 of the Regulations of the General Education Law, Law No. 28044, approved with Supreme Decree No. 011-2012-ED.

- Supreme Decree N° 006-2016-MINEDU, which approves the Sector Policy on Intercultural Education and Intercultural Bilingual Education.

- Ministerial Resolution N° 519-2018-MINEDU, which creates the Intercultural Bilingual Education Service Model.

- Viceministerial Resolution N° 034-2019-MINEDU, approves the "Alternative Basic Education Curriculum Program for the initial and intermediate cycles" and the "Advanced Cycle Education Curriculum Program" establishes in point 2 and 3 of sub-number 1.4: Cross-cutting Approaches - Inclusive Approach and attention to diversity- Intercultural Approach.

- Vice-ministerial Resolution No. 038-2022- MINEDU, approves the normative document called "Provisions for the implementation of the intervention to strengthen educational services for students with hearing disabilities or deaf people in Alternative Basic Education Centers".

The regulatory framework that regulates Higher Technological and Technical – Productive Education, which prohibits discrimination and guarantees equal access to education, is as follows:

- **Law No. 28044, General Education Law**

- **Law No. 30512, Law on Higher Education Institutes and Schools and the public careers of their teachers**, dated November 2, 2016.

- **Regulations of Law No. 30512**, approved with Supreme Decree No. 010-2017-MINEDU, dated August 25, 2017.

- **Legislative Decree No. 1375, Legislative Decree that modifies various articles of Law No. 28044, general education law**, on Technical – Productive education and dictates other provisions.

- **"General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools"**, approved by Vice-Ministerial Resolution No. 178-2018-MINEDU, on November 9, 2018, modified by Vice-Ministerial Resolution No. 277-2019-MINEDU, on November 7, 2019, and updated by Vice-Ministerial Resolution No. 049-2022-MINEDU, on May 3, 2022.

- **"General Academic Guidelines for Technical-Productive Education Centers"**, approved by Vice-Ministerial Resolution No. 188-2020-MINEDU, dated September 29, 2020.

- **"Basic quality conditions for Higher Education Institutes and Technological Higher Education Schools"**, which contains the schedule for the licensing of private technological institutes, approved with Vice-Ministerial Resolution No. 103-2022-MINEDU of August 18, 2022.

● Supreme Decree N° 012-2020-MINEDU, which approves the National Policy for Higher and Technical-Productive Education (PNESTP).

● Board of Directors Resolution N° 091-2021-SUNEDU/CD, which approves the Institutional License Renewal Model.

1.1 Non-discrimination and equality in education Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation [1], and ensure equal access to all levels and types of education (please tick all that apply): For reference: This notably is covered under SDG target 4.1 and partly target 4.b [2]. [1] See: Article/Paragraph 1(1). [2] Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”. [Legal texts (Constitution, laws, decrees, regulations, circulars, etc.) prohibit discrimination and guarantee equal access to education]

Yes

1.1 Non-discrimination and equality in education Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation [1], and ensure equal access to all levels and types of education (please tick all that apply): For reference: This notably is covered under SDG target 4.1 and partly target 4.b [2]. [1] See: Article/Paragraph 1(1). [2] Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”. [Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education]

Yes

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Yes

Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc. [In pre-primary education (including early learning and care)]

Yes

Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc. [In primary education]

Yes

Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc. [In secondary education]

Yes

Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc. [In technical and vocational education and training]

Yes

Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc. [In higher education]

Yes

Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc. [In adult education and alternative learning]

Yes

- Please indicate the relevant legal provisions:

Regarding non-discrimination and equality in education, the regulations are as follows:

● General Law of Education Law N° 28044.

The purpose of the General Education Law is to establish the general guidelines for education and the Peruvian Educational System, the powers and obligations of the State and the rights, and responsibilities of individuals and society in their educational function. It governs all educational activities carried out within the national territory, developed by natural or juridical, public or private, national or foreign persons.

Article 8. Principles of education states that: "Peruvian education has the person as the center and fundamental agent of the educational process". And among its principles are: b) Equity, which guarantees equal opportunities of access, permanence and treatment to all in a quality education system".

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● Regulation of Law N° 28044 - General Education Law (Supreme Decree N° 011-2012).

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In its article 6° Planning: establishment of regional goals and strategies for universalization, it states that: "Some aspects to be considered for the achievement of regional universalization goals are: (...) c) Preventive and compensatory measures to reverse situations of inequality through intersectoral actions that guarantee equal opportunities and the achievement of the results of the educational service".

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The CNEB also has several cross-cutting approaches for the development of the Profile of Graduation, promoting equal opportunities in education:

1. **Rights approach.** It starts by recognizing students as subjects of rights and not as objects of care, that is, as people with the capacity to defend and demand their legally recognized rights (...).

2. **Inclusive Approach or Attention to Diversity.** Today no one disputes that all girls, boys, adolescents, adults and young people have the right not only to educational opportunities of equal quality, but also to obtain learning results of equal quality, regardless of their cultural, social, ethnic, religious, gender, disability status or learning styles (...).

3. **Intercultural Approach.** In the context of the Peruvian reality, characterized by socio-cultural and linguistic diversity, interculturality is understood as the dynamic and permanent process of interaction and exchange between people from different cultures, aimed at coexistence based on agreement and complementarity, as well as respect for one's own identity and differences (...).

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opportunities of people do not depend on their gender identity and, therefore, everyone has the same conditions and possibilities to exercise their rights, as well as to expand their capabilities and opportunities for personal development, contributing to social development and benefiting from its results (...).

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These programs are intended to contribute with specific orientations, according to the characteristics of the students of each educational level, in the process of concretization of the National Curriculum in the educational institution.

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- [?] "Basic quality conditions for Higher Education Institutes and Technological Higher Education Schools", which contains the schedule for the licensing of private technological institutes, approved with Vice-Ministerial Resolution No. 103-2022-MINEDU of August 18, 2022.

● Supreme Decree N° 012-2020-MINEDU, which approves the National Policy for Higher and Technical-Productive Education (PNESTP).

● Board of Directors Resolution N° 091-2021-SUNEDU/CD, which approves the Institutional License Renewal Model.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Law No. 30512, Law on Institutes and Schools of Higher Education and the public career of their teachers, establishes in its article 7 the principles of Higher Education, among which are the principles of:

-☐“Social inclusion” (literal d), which allows all people, without discrimination, to exercise their rights, take advantage of their abilities, enhance their identities and take advantage of the opportunities that their environment offers them, accessing quality public services, so that cultural, economic, social, ethnic and geographical factors become facilitators for access to higher education.

-☐“Equity” (literal f), which seeks to ensure that the educational service reaches all people, avoiding situations of discrimination and inequality due to origin, race, sex, language, religion, opinion, economic condition or any other nature. Likewise, it promotes policies of positive recognition of cultural diversity, to this end they guarantee reasonable adjustments that allow the access and permanence of vulnerable or disabled populations.

-☐“Interculturality” (literal h), which indicates that the cultural, ethnic and linguistic diversity of the country is assumed to be rich, and finds sustenance in the recognition and respect for differences, as well as in mutual knowledge and learning attitude. for harmonious coexistence and exchange between the various cultures of the world.

Along these lines, the Regulation of Law No. 30512, in its article 17, states that training in IES and EEST is developed taking into account the approaches of equal opportunities, Human Rights, Environment, Disability, Gender and Interculturality.

Likewise, the “General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools” and the “General Academic Guidelines for Technical-Productive Education Centers”, in the description of their pedagogical approach, emphasize that Educational institutions must respond to the purposes, educational policies and transversal approaches, such as the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach, environmental approach, intergenerational approach, disability approach and differential, among others that you consider relevant.

On the other hand, Legislative Decree No. 1375, incorporates article 41 to Law No. 28044, which establishes as one of the objectives of the ETP, the attention to vulnerable populations with educational services that promote their qualification for the work of dependent or independent way.

Likewise, it incorporates article 41-A, which describes the characteristics of the ETP, among which are:

-☐Flexible (literal b), because it responds to the heterogeneity of the students and the peculiarity of their contexts.

-☐Inclusive (literal d), because it allows all people without any discrimination to exercise their rights, take advantage of their abilities and potential, reinforce their autonomy and develop under equal conditions, respecting and valuing different cultural visions, conceptions of well-being and development of the various ethnic-cultural groups, promoting access to an education that guarantees the right to cultural identity.

Law N° 30220, Article 5 of this Law (University Law) establishes the principles governing universities, among which are the following: 5.7 Meritocracy; 5.8 Pluralism, tolerance, intercultural dialogue and inclusion; 5.10 Affirmation of human life and dignity; 5.14 The best interest of the student; 5.15 Relevance of teaching and research to social reality; 5.16 Rejection of all forms of violence, intolerance and discrimination.

In addition, according to Article 6 of the aforementioned Law, the university has the following purposes, among others: 6.4 To collaborate effectively in the affirmation of democracy, the rule of law and social inclusion; 6.7 To affirm and transmit the diverse cultural identities of the country; 6.10 To form free people in a free society.

Along these lines, the National Policy for Higher and Technical-Productive Education (PNESTP, because Spanish acronym) establishes nine (9) cross-cutting approaches that must be considered in the provision of educational services in order to meet the prioritized objectives and their respective guidelines. Thus, there are the following:

- Inclusive education approach: It is an analysis tool that allows taking into account, at institutional and systemic level, the diversity of needs, potentials and aspirations of young people and adults, before and throughout the educational process. Inclusive education has four elements. First, it is an ongoing, long-term process that seeks permanent feedback between diversity and learning processes. Second, it seeks to identify and remove barriers of all kinds that impede the participation of young people and adults in education. Third, it seeks participation and completion of the educational process. And, fourth, it involves a particular emphasis on those groups of young people and adults who are at risk of vulnerability and/or exclusion.

- Gender approach: This is an analytical tool that makes it possible, based on an evaluation of reality and social relations, to identify the roles, spaces and social attributes assigned to women and men, as well as the unequal power relations and asymmetries that are reproduced within society. In this way, it makes possible to identify and explain the causes that end up reproducing asymmetries and inequalities, constituting an essential input for the formulation, implementation and evaluation of measures that contribute to overcoming gender inequality, modifying asymmetrical relations between women and men, and

eradicating all forms of gender-based violence.

- Intercultural approach: This is an analytical tool based on the recognition of cultural differences as one of the pillars for the construction of a democratic society, based on the establishment of relations of equity and equality of opportunities and rights. This approach implies that the State values and incorporates different cultural visions, conceptions of well-being and development of the various ethnic-cultural groups for the generation of culturally relevant services, the promotion of intercultural citizenship based on dialogue and differentiated attention to indigenous peoples and the Afro-Peruvian population.

- Disability approach: This approach is the core of the effectiveness of any action to promote the rights of persons with disabilities, since it guides state action to identify and eliminate environmental and attitudinal barriers that limit or prevent the exercise of the rights of this population.

- Differential approach: This a progressive development of the principle of equality and non-discrimination. Although all people are equal before the law, it affects each one differently, according to their class, gender, ethnic group, age, physical or mental health and sexual orientation. Therefore, for equality to be effective, recognition, respect, protection, guarantee of rights and treatment must be in accordance with the particularities of each individual.

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education: [In pre-primary education (including early learning and care)]

No

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education: [In primary education]

No

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education: [In secondary education]

No

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education: [In technical and vocational education and training]

Yes

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education: [In higher education]

Yes

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education: [In adult education and alternative learning]

Yes

- Please provide details:

The National Policy for Higher and Technical-Productive Education, approved by Supreme Decree No. 012-2020-MINEDU, (hereinafter PNESTP), raises as a public problem "Population with inadequate skills to practice their profession and develop research and innovation", which It has been built through a systemic approach that considers access among its central elements.

In this regard, access addresses the problem related to the transition to Higher and Technical-Productive Education (ESTP because Spanish acronym). In the previous stage, aspects such as vocational guidance and the provision of information for decision-making are addressed. In the admission stage, aspects related to the identification of competencies or learning for access and the provision of student support mechanisms and scholarships and credits are addressed. This element also addresses the problem related to the passability of the population in general.

Likewise, the PNESTP includes, among other approaches, the Inclusive Education Approach, which is an analysis tool that allows duly taking into account, at an institutional and systemic level, the diversity of needs, potential and aspirations of young people and adults, before and throughout the training process. Inclusive education has four elements. Firstly, it is a constant and long-term process, which seeks permanent feedback between diversity and learning processes. Secondly, it seeks to identify and remove barriers of all kinds that prevent the participation of young people and adults in education. Third, it seeks participation and conclusion of the educational process. And, fourthly, it involves a particular emphasis on those groups of young people and adults who are at risk of vulnerability and/or exclusion.

Under this context, the PNESTP has 6 Priority Objectives (OP), OP1 being "Increase the population's equitable access to Higher and Technical-Productive Education", which aims to provide various routes for equitable access, according to the potential and aspirations of basic education students and the population over 14 years of age. The mechanisms include the national evaluation of learning and strategies for vocational and labor orientation of basic education students and the population in general, for the continuity of their educational trajectories in the ESTP. It should be noted that this objective seeks to identify and reduce the barriers that limit access through support mechanisms for the population at greatest risk of exclusion.

Combatting discrimination in terms of curriculum: [In pre-primary education (including early learning and care)]
No
Combatting discrimination in terms of curriculum: [In primary education]
No
Combatting discrimination in terms of curriculum: [In secondary education]
No
Combatting discrimination in terms of curriculum: [In technical and vocational education and training]
Yes
Combatting discrimination in terms of curriculum: [In higher education]
Yes
Combatting discrimination in terms of curriculum: [In adult education and alternative learning]
Yes
- Please provide details:
It should be noted that the study programs of Technical - Productive and Higher Technological Education, whose training is applied and of a technical nature, must respond to a set of competencies that are required in the labor market, for this, the study plans that implement them, they must contemplate technical or specific competencies and competencies for employability, incorporating the learning contents necessary for their development, which ensure the comprehensive training of students with social and employment values, which allow them to adapt and insert themselves into a specific work space, to perform a specific function. Without prejudice to this, in accordance with the "General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools" and the "General Academic Guidelines for Technical-Productive Education Centers", the public IES, EEST and CETPRO They must respond to the purposes, educational policies and transversal approaches, such as: the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach, environmental approach, intergenerational approach, disability and differential approach, among others that you consider relevant; which are indicated in the description of its pedagogical approach. These approaches guide the various educational processes at all times, imbuing themselves with the competencies that students are expected to develop. Under this context, the IES, EEST and CETPRO take these approaches into consideration in a transversal manner, for the appropriate treatment of each student and in the own development of learning activities. The implementation of these approaches seeks to promote equitable treatment, free of violence and discrimination, respecting the right of all people to be educated with equal opportunities. To achieve this, some strategies are developed such as: -☐ Develop methodological strategies in teaching/learning sessions to promote the equitable or proportional participation of women and men in all activities aimed at achieving the capabilities associated with the competency units of the study program. -☐ Use of methodologies for the development of necessary attitudes that complement the comprehensive training of students, both on a personal and professional level. -☐ The training strategy must incorporate flexibility criteria in training that facilitate methodological, curricular, resource-level adaptation, among others, that favor learning processes while respecting the pace and characteristics of each student. In University Education According to the University Law, the State recognizes university autonomy, which is inherent to the universities and is exercised in accordance with the provisions of the Constitution. This autonomy is manifested, among others, in the academic regime, which includes the following regimes: it implies the self-determination power of the universities to set the framework of the teaching-learning process within the university institution. This implies the establishment of curricula, research programs, forms of admission to and graduation from the institution, etc.

Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Guidelines for the elaboration of internal normative documents for the prevention and intervention in cases of sexual harassment in the university community (RVM N° 328-2021-MINEDU).

Its objective is to establish guidelines for universities to develop and/or update their internal documents on the prevention and intervention of sexual harassment in the university community, within the framework of current regulations and in the exercise of their autonomy. To this end, the RVM N° 328-2021-MINEDU has the following specific sections: i) Strengthening the prevention of acts of sexual harassment; ii) Reporting, investigation and punishment; and iii) Comprehensive and timely attention to the alleged victim of sexual harassment.

With regard to its implementation, based on the results of the "Survey of Educational Service to Public Universities 2022", the following can be seen: 77% of the students were interviewed in the "Survey of Educational Service to Public Universities 2022". The following can be seen: 77% of the universe indicated that they do have a protocol, regulation and/or directive updated as indicated in the approved guidelines; 65% of the universe indicated that they have carried out activities for the prevention of acts of sexual harassment in the last academic semester; 72% of the universe indicated that they have disseminated the channels for reporting cases of sexual harassment in the last academic semester; and 44% of the universe indicated that they have not carried out actions to protect alleged victims of sexual harassment.

- Supreme Decree N° 006-2016-MINEDU, which approves the Sector Policy on Intercultural Education and Intercultural Bilingual Education.

- Ministerial Resolution N° 519-2018-MINEDU, which creates the Intercultural Bilingual Education Service Model.

- Viceministerial Resolution N° 034-2019-MINEDU, approves the "Alternative Basic Education Curriculum Program for the initial and intermediate cycles" and the "Advanced Cycle Education Curriculum Program" establishes in point 2 and 3 of sub-number 1.4: Cross-cutting Approaches - Inclusive Approach and attention to diversity - Intercultural Approach.

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Legislation provides for inclusive education for all]

Yes

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Policy measures aim to enhance inclusion in education for all]

Yes

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Teachers are trained on inclusive education and to value diversity]

Yes

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Initiatives to address discrimination and promote cultural diversity and mutual acceptance]

No

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Multiple and flexible learning pathways are provided for]

Yes

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Curricula and teaching methods are inclusive in design]

No

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Multilingual and intercultural education is supported]

No

1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures: [Other]

- Supreme Decree N° 006-2016-MINEDU, which approves the Sector Policy on Intercultural Education and Intercultural Bilingual Education. - Ministerial Resolution N° 519-2018-MINEDU, which creates the Intercultural Bilingual Education Service Model. - Viceministerial Resolution N° 034-2019-MINEDU, approves the "Alternative Basic Education Curriculum Program for the initial and intermediate cycles" and the "Advanced Cycle Education Curriculum Program" establishes in point 2 and 3 of sub-number 1.4: Cross-cutting Approaches - Inclusive Approach and attention to diversity - Intercultural Approach. - Vice-Ministerial Resolution No. 038-2022-MINEDU, approving the normative document entitled "Provisions for the implementation of the intervention to strengthen educational services for students with hearing disabilities or deaf people in Alternative Basic Education Centers".

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Regarding the legislation that contemplates inclusive education for all

Legislation contemplates inclusive Education in all its stages, forms, modalities, levels and cycles, thus there is the following general regulatory framework:

- [x] Law No. 30797, Law that promotes inclusive education, modifies article 52 and incorporates articles 19-A and 62-A in Law No. 28044, General Education Law.

- [x] Supreme Decree No. 007-2021-MINEDU, which makes modifications and additions to the Regulations of Law No. 28044, General Education Law, approved by Supreme Decree No. 011-2012-ED, in order to promote inclusive education in all its stages, forms, modalities, levels and cycles, in accordance with the provisions of Law No. 30797.

- [x] The "Framework Plan that guides the implementation of inclusive education with a territorial approach, contemplating the conditions of organization and institutional and intergovernmental articulation", approved with Ministerial Resolution No. 432-2022-MINEDU, is a plan that aims to specify what has been established in Supreme Decree N° 007-2021-MINEDU, to guarantee inclusive education in all its stages, forms, modalities, levels and cycles.

Likewise, the regulatory documents that regulate Higher Technological and Technical – Productive Education incorporate provisions for the implementation of transversal approaches, among which is the inclusion approach. In that sense we have:

- [x] The "General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools" (Vice-Ministerial Resolution No. 049-2022-MINEDU) and the "General Academic Guidelines for Technical-Productive Education Centers" (Vice-Ministerial Resolution No. 188-2020-MINEDU), in the description of their pedagogical approach, they emphasize that educational institutions must respond to the purposes, educational policies and transversal approaches, such as the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach, environmental approach, intergenerational approach, disability and differential approach, among others that it considers relevant.

Regarding the training that teachers receive on inclusive education

In the year 2023, jointly with the Directorate of Special Basic Education of the Ministry of Education, and with the aim of generating reflection on the value of diversity in education, as well as rethinking current pedagogical practices with the objective To build friendly educational environments with the fewest possible barriers to learning, 06 virtual technical assistance sessions on Inclusive Education were carried out.

They were addressed to managers, teaching staff and coordinators and/or those responsible for Welfare and Employability Units and/or similar areas of the public and private Institutes of Higher Technological Education (IEST) at the national level, of the Higher Schools of Public and private Artistic Training (ESFA) and public Technical-Productive Education Centers (CETPRO) at the national level.

In total, 305 institutions participated, represented by 1,017 people who attended on the different dates of the technical assistance.

Regarding multiple and flexible learning paths.

The National Policy for Higher and Technical Productive Education (DS N° 012-2020-MINEDU) and the National Qualifications Framework of Peru (DS N° 012-2021-MINEDU) have the following main objectives: Promote lifelong learning, of life and facilitate people's transit through the educational system in a formal, non-formal and informal way. Likewise, increase the population's equitable access to technical-productive and higher technological education.

Along these lines, in 2021 the "Provisions that regulate transitivity between educational institutions of Basic, Technical – Productive and Higher Technological Education" were approved, through RVM No. 176-2021-MINEDU, which regulates the process for a person transition from one program and training level to another through the recognition of their learning (validation), in such a way that they can access technical-productive and higher technological education, without repeating learning. Currently, the implementation of the walkability process is being promoted through three alternatives: Curricular Evaluation, Evaluation of Evidence by Performance and Shared Curricular Programming. Regarding this process, the year 2023 has resulted in 1,849 students who have transitioned to CETPRO through an agreement and 56 students through the Evidence for Performance Evaluation process.

It is also important to specify that the regulatory framework of Productive Technical Education has been promoting the recognition of the prior learning of people who have acquired skills in the informal or non-formal sphere. (LAG RVM 188-2020-MINEDU).

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Regarding the legislation that contemplates inclusive education for all

Currently, there are no specific regulatory provisions for the development of inclusive education, as well as guidelines regarding the implementation of the Universal Design for Learning, reasonable adjustments, educational supports, among other relevant and necessary measures for educational services, productive technician and superior technological and artistic.

Likewise, there is no clear route for the hiring process of transdisciplinary personnel (psychologist, linguistic models, Peruvian sign language interpreter and interpreter guide for deafblindness, among others) in technical-productive, higher technological and higher education institutions. artistic.

Regarding multiple and flexible learning paths

-☐Currently, the general and specific regulatory framework does not have some enablers to recognize employability competencies and training experiences for basic education students.

-☐Likewise, there are still no procedures that allow the recognition of learning in the non-formal and informal sphere.

-☐Regarding the student's access to technological higher education, an ordinary exam is still required and after that they could only opt for a validation process.

Other relevant general measures, including gender equality [Legislation provides for gender equality in education]

Yes

Other relevant general measures, including gender equality [Policy measures aim to enhance gender equality]

No

Other relevant general measures, including gender equality [Gender-responsive education sector planning is undertaken]

No

Other relevant general measures, including gender equality [Providing positive or affirmative action measures]

No

Other relevant general measures, including gender equality [Providing financial incentives and fellowships]

No

Other relevant general measures, including gender equality [Teachers are trained (initial and in-service) on gender equality]

No

Other relevant general measures, including gender equality [Teachers are trained to combat stigmatisation]

Yes

Other relevant general measures, including gender equality [All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education]

No

Other relevant general measures, including gender equality [Re-entry programmes for young mothers are provided for]

No

Other relevant general measures, including gender equality [Ensuring safe and adequate gender-sensitive sanitation facilities]

No

Other relevant general measures, including gender equality [Curricula are rid of all stereotypes and bias]

Yes

Other relevant general measures, including gender equality [Ensuring gender parity in science, technology, engineering and mathematics (STEM)]

No

Other relevant general measures, including gender equality [Ensuring gender parity in technical and vocational training education and training (TVET)]

Yes

Other relevant general measures, including gender equality [Other]

The normative documents that regulate Higher Technological and Technical-Productive Education incorporate provisions for the implementation of cross-cutting approaches, among which is the gender approach, with the purpose of mainstreaming and institutionalizing such approach as a preventive measure that contributes to the eradication of gender-based violence. In this sense, we have the following: a) Guidelines for the elaboration of internal normative documents for the prevention and intervention in cases of sexual harassment in the university community (RVM N° 328-2021-MINEDU). Its objective is to establish guidelines for universities to prepare and/or update their internal documents for the prevention and intervention of sexual harassment in the university community, within the framework of current regulations and in the exercise of their autonomy. To this end, the RVM has the following specific sections: i) Strengthening the prevention of acts of sexual harassment; ii) Reporting, investigation and punishment; and iii) Comprehensive and timely attention to the alleged victim of harassment. Sexual Regarding their implementation, based on the results of the "Survey of Educational Service to Public Universities 2022", the following can be seen: 77% of the universe indicated that they do have a protocol, regulation and/or updated directive with the approved guidelines. The following can be seen: 77% of the universe indicated that they do have a protocol, regulation and/or directive updated as indicated in the approved guidelines; 65% of the universe indicated that they have carried out activities for the prevention of acts of sexual harassment in the last academic semester; 72% of the universe indicated that they have disseminated the channels for reporting cases of sexual harassment in the last academic semester; and 44% of the universe indicated that they have not carried out actions to protect alleged victims of sexual harassment. b) Proposed protocol for service 4.3.3 of the PNIG, within the framework of Supreme Decree No. 002-2020-MIMP In accordance with the provisions of Ministerial Resolution No. 116-2021-MIMP, which approves the "Guidelines for the development of protocols or equivalent standards for the implementation of the services of the National Policy for Gender Equality - PNIG", the technical team of the Ministry of Education, comprised of DIGESU, DISERTPA and DIFOID, is in charge of developing the protocol for the implementation of service 4. 3.3 of the PNIG: "Technical-Productive and Higher Education of women in traditionally masculinized and/or better paid careers, with a gender equality approach, which promotes access, permanence and graduation". In this regard, in the process of correcting the observations made by the MIMP, after its last feedback on September 5, 2023, the MINEDU technical team considered it appropriate to make some additions and improvements to the protocol proposal. Thus, during the months of October to December 2023, several working meetings were held to review and reach consensus on the contributions made by the three directorates involved. Subsequently, in an exchange of communications with the Ministry of Women and Vulnerable Population (MIMP) during the first quarter of 2024, the need arose to construct the conceptualization of "masculinized and/or better paid careers", in order to operationalize the service 4.3.3. In view of this, the technical team of the Minedu has been making this effort, among other improvements to the draft protocol, which has been resubmitted for review to the MIMP in July. c) Proposal "Guidelines to implement actions to prevent the interruption of university studies and to promote the continuity of studies with quality and equity". DIGESU prepared the normative project "Guidelines for implementing actions to prevent the interruption of university studies and to promote the continuity of studies with quality and equity", which seeks to promote in universities the institutionalization of actions for the early identification and prevention of the risk of interruption of studies, as well as for the timely intervention in the return of students who have interrupted their studies. This is in recognition of the fact that one of the factors associated with interruption is violence in the academic environment, mainly against the female population. To date, the normative project is in the process of validation and feedback with universities, for adjustments and improvements, after which it should continue with its approval process.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Regarding legislation that provides for gender equality in education

The regulatory documents that regulate Technological and Technical – Productive Higher Education incorporate provisions for the implementation of transversal approaches, among which is the gender approach, with the purpose of mainstreaming and institutionalizing said approach as a preventive measure that contributes to the eradication of gender-based violence. In that sense we have:

- [?]The Regulation of Law No. 30512 ((approved by Supreme Decree No. 010-2017-MINEDU), in whose article 17 states that training in IES and EEST is developed taking into account the approaches of equal opportunities, the Rights Humans, Environment, Disability, Gender and Interculturality.

- [?]Likewise, the “General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools” (Vice-Ministerial Resolution No. 049-2022-MINEDU) and the “General Academic Guidelines for Technical-Productive Education Centers ” (Vice-Ministerial Resolution No. 188-2020-MINEDU), in the description of their pedagogical approach, emphasize that educational institutions must respond to the purposes, educational policies and transversal approaches, such as the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach , environmental approach, intergenerational approach, disability and differential approach, among others that it considers relevant.

- [?]The “Guidelines for the application of the gender approach in Technical-Productive Education Centers, Institutes and Schools of Higher Education” (approved by Vice-Ministerial Resolution No. 044-2020-MINEDU, dated February 13, 2020). The main objective of these guidelines is to ensure that educational institutions mainstream and institutionalize the gender approach , promoting a culture and training for equal rights for men and women , and free of all forms of discrimination and gender violence in the educational community. promoting personal and professional well-being, as well as the development of the country.

- [?]The Technical Standard “Provisions for the prevention, attention, monitoring and punishment of sexual harassment in Public and Private Technical-Productive Education Centers and Institutes and Schools of Technological, Pedagogical and Artistic Higher Education”, approved by Ministerial Resolution No. 067- 2024-MINEDU, dated February 13, 2024, aims to establish provisions to regulate the prevention, attention, monitoring and punishment of sexual harassment, in accordance with the provisions of Law No. 27942, Law on the Prevention and Punishment of Sexual Harassment. and its Regulations, approved with Supreme Decree No. 014-2019-MIMP.

Regarding the training that teachers receive to fight against stigmatization

It is important to note that, from the DIGESUTPA, through the DISERTPA, technical support is provided regarding the implementation of the regulatory framework linked to the Gender Approach, through technical assistance. In this sense, and under the regulatory framework described above, in 2023, the following Technical Assistance actions were carried out:

- [?]05 virtual technical assistance linked to the Implementation of the Gender Approach in institutional management, institutional culture and academic training of the Institutes of Higher Technological Education, aimed at managers, teachers, members of CODE and/or CIFHS and people responsible for the Units of Wellbeing and Employability or similar areas. These were provided to 14 regions of the country (Metropolitan Lima, Cajamarca, Tumbes, Piura, Lambayeque, La Libertad, Ancash, Arequipa, Apurímac, Cusco, Moquegua, Puno, Tacna and Ica). A total of one hundred and fifty-seven (157) people participated, on different dates, in the technical assistance.

- [?]02 virtual technical assistance, on gender stereotypes, whose purpose was to generate self-reflection on our own prejudices and gender stereotypes that are socially imposed on us and how these influence the generation of differences and unequal treatment between men and women, the latter being in a situation of greater risk of social exclusion. These assistances were aimed at managers, teaching staff and those responsible for the Welfare Unit or similar areas of the public and private Higher Schools of Artistic Training (ESFA), and the public Institutes of Higher Technological Education (IEST) of the Ayacucho regions. and Junín. A total of 25 people participating.

- [?]05 technical assistance on the Disciplinary Administrative Process (PAD) in situations of sexual harassment, aimed at Members of the Disciplinary Administrative Procedures Commissions of the DRE/GRE at the national level, responsible for the Technological Institutes area. In total, 23 CPADs from the DRE/GRE participated, represented by 57 of their members.

- [?]Virtual technical assistance was also provided, at the request of the institution, to the management, teaching and Technical Secretariat of the National Higher Autonomous School of Fine Arts of Peru (ENSABAP) of Metropolitan Lima, in which there was the collaboration of a MIMP specialist to address essential concepts about Sexual Harassment. 45 people participated (25 women and 20 men).

Regarding study plans free of stereotypes and prejudices

It should be noted that the study programs of Technical - Productive and Higher Technological Education, whose training is applied and of a technical nature, must respond to a set of competencies that are required in the labor market, for this, the study

plans that implement them, they must contemplate technical or specific competencies and competencies for employability, incorporating the learning contents necessary for their development, which ensure the comprehensive training of students with social and employment values, which allow them to adapt and insert themselves into a specific work space, to perform a specific function.

Notwithstanding this, in accordance with the “General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools” and the “General Academic Guidelines for Technical-Productive Education Centers”, the public IES, EEST and CETPRO They must respond to the purposes, educational policies and transversal approaches, which are indicated in the description of their pedagogical approach. These approaches guide the various educational processes at all times, imbuing themselves with the competencies that students are expected to develop.

Under this context, the IES, EEST and CETPRO mainstream the gender approach in institutional management, institutional culture and equal and comprehensive training, in order to promote equitable treatment, free of stereotypes, prejudices and gender violence by developing strategies. methodological in the teaching/learning sessions to promote the equal participation of women and men in all activities aimed at achieving the capabilities associated with the competency units of the study program.

Regarding guaranteeing gender parity in technical and vocational training

The intervention carried out by the DIGESUTPA, through the DISERTPA, seeks to guarantee gender parity and equal opportunities in the teaching and technical and professional training of all students enrolled in the Technical Education Centers. -Productive, Institutes of Higher Technological Education and Schools of Higher Technological Education, since the benefit of a quality educational service falls on them as a consequence of the training provided to teachers, managers and specialists.

On the other hand, within the framework of the licensing process carried out by the DIGEST, it is urged that the IES and EEST within their management documents contemplate provisions related to the prevention, attention, monitoring and punishment of sexual harassment, in accordance with the established in Law No. 27942, Law on the Prevention and Punishment of Sexual Harassment and its Regulations, approved with Supreme Decree No. 014-2019-MIMP.

What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Even though women's access to traditionally masculinized study programs has increased, there is still a gender gap that is gradually being sought to be narrowed.

Thus, according to the 2023 Educational Census, first semester, 42,443 people enrolled in traditionally masculinized study programs in Institutes and Schools of Higher Technological Education (IEST, IES and EEST), public and private, nationwide. Of this universe, 33,311 are men and 9,132 are women.

In the public administration there were 25,564 people enrolled (20,024 men and 5,540 women), while the private administration brought together 16,879 students (13,287 men and 3,592 women).

For its part, according to the 2023 Educational Census, first semester, 23,869 people enrolled in traditionally masculinized study programs in Technical-Productive Education Centers (CETPRO), public and private, nationwide. Of this universe, 16,587 are men and 7,282 are women.

In the public administration there were 16,027 people enrolled (11,138 men and 4,889 women), while the private administration brought together 7,842 students (5,549 men and 2,393 women).

On the other hand, according to the Directorate of Educational Policies, it can be noted that STEM disciplines are those that would be closer to what can be considered as traditionally "masculinized". Given this, in order to identify which careers would fall into this group, the United Nations (UN), in a document published in 2020 on women in science, technology, engineering and mathematics in Latin America and the Caribbean, specified that, in accordance with the International Standard Classification of Education (ISCED), the disciplines related to STEM education are those that are grouped into the following fields of education: 05 Natural sciences, mathematics and statistics; 06 Information and communication technologies (ICT); and 07 Engineering, industry and construction (UN, 2020, pp. 17-18).

Taking this into account, the "National Classifier of University, Pedagogical, Technological and Technical Productive Higher Education Programs and Institutions 2018" prepared by INEI, took the latest version of ISCED as a reference for its structuring, which allows identifying which careers within the Peruvian system belong to the STEM disciplines in the three fields of education mentioned. To this end, the following are those careers, study programs or specialties in higher education (university, technological and pedagogical) with the number of enrolled students by gender in the first semester of 2023.

Table 1. STEM careers in university higher education (enrollment 2023 - I)

WE CAN NOT INCLUDE A TABLE

Note: The variable containing the career code (to 3 digits) according to the 2018 version of the INEI program classifier has been taken as reference. Careers in biology, textile production and confections, ecology and environment, food industries, and architecture and urban planning have been excluded, since there was a higher predominance of female enrollment.

Source: Higher Education Information Collection System (SIRIES).

Prepared by the authors.

Role of the CONAIG

The High-Level National Commission for Gender Equality - CONAIG, created by Supreme Decree No. 018-2021-MIMP, prepares an annual report with proposals to improve multisectoral governance for the implementation of the National Gender Equality Policy, convening public entities of the three levels of government, as well as private entities of the civil society, collectives and organizations linked by their purpose.

The Ministry of Education has achieved objectives 2 and 4 during 2023 and so far in 2024. These are:

OP 2: PNIG Guidelines 2.2 - UO responsible for DIGEBR in coordination with DIGEIBIRA and DIGESE.

Strengthen training in comprehensive sexuality education (ESI) aimed at basic education students, with cultural relevance in order to promote equality and prevent sexual violence and early pregnancy.

Strengthen competencies to promote equality and prevent sexual violence of 55 thousand students of 158 IIEE (Primary) in urban and rural areas of the regions of Amazonas, Ayacucho, Cajamarca, Huanuco, Loreto, Metropolitan Lima. - Strengthen competencies to promote equality, prevent sexual violence and early pregnancy for 23 thousand students of 100 IIEE in urban and rural areas in the regions of Piura, Ayacucho, Ancash, Ucayali, Loreto and Metropolitan Lima, in a targeted manner.

OP 4: PNIG Guidelines 4.3

Literacy with entrepreneurship for women who carry out a community work activity in the field of handicrafts, agriculture, weaving, among others.

Improve technical skills and competencies for entrepreneurship and labor insertion of 1000 rural women through the Literacy Program and community education in 7 regions: Amazonas, Apurímac, Ayacucho, Cusco, Huancavelica, Junín and Lima.

The Literacy Program has been developing two technical assistance programs, one virtual and the other on-site in the 16 regions it serves, including Amazonas, Apurímac, Ayacucho, Cusco, Huancavelica and Lima. In these assistance programs, the ABE curriculum is implemented, emphasizing the area of Education for Work, whose purpose is to promote access to the labor market through technical and entrepreneurial training. Every learning experience planned in the literacy circles ends in an individual, family and/or community entrepreneurship project. This is the orientation we have been working on. So far, information gathering instruments have been applied (with the support of applications such as KoboCollet and the SIMOP platform) on the application of the program and the development of entrepreneurship projects in order to establish corrective measures and improvements in the next 2023 II period.

Does the legal minimum age for marriage conform to international standards (18 years) [1]: Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married. [1] Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Legislation provides for the right to education of national minorities]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Policy measures aim to enhance the right to education of national minorities]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Policy elaboration includes consultations with local communities]

Yes

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [The right to carry out their own educational activities is legally guaranteed for national minorities]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Educational standards are established for educational institutions run by national minorities]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Positive or affirmative action measures are provided for national minorities]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Financial incentives and fellowships are provided for national minorities]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Teachers are trained on intercultural education]

Yes

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Teachers are trained to combat stigmatisation]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Multilingual and intercultural education are supported]

Yes

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Native language instruction is ensured for national minorities]

Yes

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Adapting curricula and teaching and learning methods to their needs for national minorities]

Yes

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Curricula are rid of all stereotypes and bias]

No

National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023. [Other]

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Law No. 29785, Law on the Right to Prior Consultation of Indigenous or Native Peoples, recognized in Convention 169 of the International Labor Organization (ILO). It develops the content, principles and procedure of the right to prior consultation of indigenous or native peoples with respect to legislative or administrative measures that directly affect them. It is interpreted in accordance with the obligations established in Convention 169 of the International Labor Organization (ILO), ratified by the Peruvian State through Legislative Resolution 26253.

- Supreme Decree N° 006-2016-MINEDU, which approves the Sector Policy on Intercultural Education and Intercultural Bilingual Education.

- Ministerial Resolution N° 519-2018-MINEDU, which creates the Intercultural Bilingual Education Service Model.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.
Indigenous people: [Legislation provides for the right to education of indigenous people]
Yes
Indigenous people: [Policy measures aim to enhance the right to education of indigenous people]
Yes
Indigenous people: [Policy elaboration includes consultations with local communities]
Yes
Indigenous people: [The right to carry out their own educational activities is legally guaranteed for indigenous people]
Yes
Indigenous people: [Educational standards are established for educational institutions run by indigenous people]
Yes
Indigenous people: [Positive or affirmative action measures are provided for indigenous people]
Yes
Indigenous people: [Financial incentives and fellowships are provided for indigenous people]
Yes
Indigenous people: [Teachers are trained on intercultural education]
Yes
Indigenous people: [Teachers are trained to combat stigmatisation]
No
Indigenous people: [Multilingual and intercultural education are supported]
Yes
Indigenous people: [Native language instruction is ensured]
Yes
Indigenous people: [Adapting curricula and teaching and learning methods to their needs for indigenous people]
Yes
Indigenous people: [Curricula are rid of all stereotypes and bias]
Yes

Indigenous people: [Other]

In accordance with the provisions of Convention No. 169 of the International Labor Organization; the Political Constitution of Peru; Law No. 27818, Law for Intercultural Bilingual Education; Law No. 28044, General Education Law; Law No. 29735, which regulates the use, preservation, development, recovery, promotion and dissemination of the native languages of Peru; among other international and national normative documents, members of indigenous or native peoples have the right to learn their native language based on their own cultural and linguistic references, but also to access other sociocultural scenarios; among other international and national normative documents, members of indigenous or native peoples have the right to learn their native language based on their own cultural and linguistic references, but also to access other socio-cultural scenarios, to learn Spanish as a language for national communication and a foreign language for communication in broader contexts. In other words, they have the right to Intercultural Bilingual Education (IBE); therefore, in order to comply with this right, it is necessary to provide an adequate and relevant service with teachers who are fluent in both oral and written native languages and who know the culture of the students. An important milestone in IBE has been the approval of the Sectoral Policy for Intercultural Education and Intercultural Bilingual Education, with the purpose of guaranteeing relevant and quality learning to children, adolescents, young people and senior citizens throughout Peru, based on the recognition and positive valuation of the socio-environmental reality and the cultural and linguistic diversity that characterizes the country, contributing to the formation of protagonist citizens and in the construction of a collective project of democratic and plural society with gender equality. The National Intercultural Bilingual Education Plan to 2021 (PLANEIB), approved by Ministerial Resolution No. 629-2016-MINEDU of December 14, 2016, is the management tool that guides the implementation of the IBE public policy in the different educational instances. The PLANEIB, is the result of a joint work, since it has gone through the process of prior consultation with the native and/or indigenous peoples through their representative organizations (national, regional and local). This process was carried out between October 2015 and January 2016, achieving its approval with consensual agreements in all aspects, constituting a historic and unprecedented event in Peruvian education. With Ministerial Resolution No. 519-2018-MINEDU, the Intercultural Bilingual Educational Service Model (MSEIB) is created, the same that considers three forms of pedagogical attention to respond with relevance to the different socio-cultural and linguistic scenarios. • These forms of attention are: i) EIB of Cultural and Linguistic Strengthening, for II.EE students who understand and express themselves fluently or have a predominant use of the native language and a Spanish with little communicative proficiency, ii) EIB of Cultural and Linguistic Revitalization, for II. EE students who understand and express themselves fluently in Spanish and are passive bilingual or have an incipient command of the native language, but have strongly rooted cultural practices and references from their native population and, iii) EIB in Urban Settings, to serve indigenous migrant students in urban or peri-urban contexts, where different scenarios of bilingualism and language contact may occur. • Each form of attention, at the pre-school and primary levels, requires a differentiated number of EIB seats, being Cultural Strengthening the only one that requires 100% bilingual seats, while EIB Revitalization requires 75% of the total teaching staff to be bilingual and, EIB in Urban Areas, 33% must be bilingual seats. • Likewise, it is necessary to specify that considering the progressive implementation established in the MSEIB itself, at the secondary level, only the areas of communication and social sciences require teachers to certify proficiency in the native language, regardless of their form of attention. In the other curricular areas this requirement does not apply.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Convention No. 169 of the International Labor Organization.
- The Political Constitution of Peru.
- Law No. 27818, Law for Intercultural Bilingual Education.
- Law No. 28044, General Education Law.
- Law No. 29735, which regulates the use, preservation, development, recovery, promotion and dissemination of the native languages of Peru.
- Supreme Decree No. 00635, which regulates the use, preservation, development, recovery, promotion and dissemination of the native languages of Peru.
- Supreme Decree N° 006-2016-MINEDU, which approves the Sector Policy on Intercultural Education and Intercultural Bilingual Education.
- Ministerial Resolution N° 519-2018-MINEDU, which creates the Intercultural Bilingual Education Service Model.
- Scholarship 18 - Intercultural Bilingual Education Modality (EIB) is aimed at those who are fluent in one of the eligible native Amazonian languages, such as Ashaninka, Kichwa, Shawi, Kukama-Kukamiria, Achuar or Awajún, and wish to study Intercultural Bilingual Education at the initial or primary level.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added. - Deficiency in the actions of complex articulated actions to be worked with the leaders of the regions. More emphasis on performance evaluation and role responsibilities in the management, accompaniment and monitoring of the implementation of policies, guidelines and regulations in favor of preventing and detecting situations of discrimination and/or violence. - Limitations in the adequacy and contextualization of tools, instruments and pedagogical resources adapted and responsive to socio-cultural and linguistic diversity. - There are no budgets that directly address these actions, which is why preventive work actions are limited. - Limited information gathering system (data, research) on the subject. This in order to be able to respond to the needs of our students and the educational community, especially in high-risk populations, such as native peoples, Amazonian Andeans, Afro-Peruvians and others.
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Legislation provides for their right to education] Yes
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Policy measures aim to enhance their right to education] No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Inclusion in mainstream schools is ensured] No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Positive or affirmative action measures are provided for] No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [All administrative barriers to access education are removed] No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers are provided for] No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Teachers are specifically trained to ensure their inclusion] No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Teachers are trained to combat stigmatisation] No

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Financial incentives and fellowships are provided for]
No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Auxiliary assistance is provided]
No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Multiple and flexible learning pathways are provided]
Yes
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Curricula are rid of all stereotypes and bias]
Yes
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Accelerated learning programmes are provided]
No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Non-formal and/or alternative education programmes are provided]
No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Language classes to newcomers are provided for]
No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Multilingualism and intercultural education are encouraged]
No
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2). [Other]

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Regarding the legislation that contemplates the right to education of people on the move

According to article 2 of Law 30512, Law of Higher Education Institutes and Schools and the Public Career of their Teachers, its scope of application includes public and private higher education institutes and schools, national and foreign, which are part of the Higher Education stage, with the exception of schools and higher institutes of artistic training. Online, regarding the registration of foreigners, current regulations specify the following:

- ☒ In accordance with section 12.2 of the "General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools" (updated by RVM No. 049-2022-MINEDU), the documents admitted for the enrollment of foreign students are the immigration card and the passport.

- ☒ Likewise, in accordance with the provisions issued by the Migration body; The Minedu recording system has enabled the Temporary Permanence Permit (PTP) as a valid document for registration in the case of foreign citizens.

Regarding multiple and flexible learning paths

Technical-Productive Education (ETP) is developed in the Technical-Productive Education Centers (CETPRO), which offer educational services aimed at the development of entrepreneurial capabilities and work skills that respond to the needs of the productive sector, are complemented through training experiences in real work situations.

It should be noted that the ETP in the CETPRO, serves to student population from the age of 14, and it is organized in two cycles: Technical Auxiliary Cycle, where students develop skills that allow them to carry out less complex work in the production process, and the Technical Cycle, where students develop skills that allow them to perform effectively in a working environment, a specific function, controlling and supervising their own tasks and activities, identifying technical problems and executing specific corrective actions.

To enroll in a study program offered at a CETPRO, for the Technical Auxiliary Cycle, students must be at least 14 years old and it is not necessary to have completed any formal educational level. In the case of the Technical Cycle, the minimum age of 14 years and having completed Primary Education or the Intermediate Cycle of Alternative Basic Education is required. In addition to these requirements, in the case of foreigners, they can be registered by presenting their immigration card or passport.

Under this context, the ETP is presented as a flexible and easily accessible training modality, and also contributes to the people who were stimulated in the CETPRO to develop entrepreneurship skills, which will favor their access to job opportunities and improvement of their skills.

Regarding study plans free of stereotypes and prejudices

It should be noted that the study programs of Technical - Productive and Higher Technological Education, whose training is applied and of a technical nature, must respond to a set of competencies that are required in the labor market, for this, the study plans that implement them, they must contemplate technical or specific competencies and competencies for employability, incorporating the learning contents necessary for their development, which ensure the comprehensive training of students with social and employment values, which allow them to adapt and insert themselves into a specific work space, to perform a specific function.

Without prejudice to this, in accordance with the "General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools" and the "General Academic Guidelines for Technical-Productive Education Centers", the IES, EEST and CETPRO Public institutions must respond to the purposes, educational policies and transversal approaches, such as: the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach, environmental approach, intergenerational approach, disability and differential approach, among others that you consider relevant; which are indicated in the description of its pedagogical approach. These approaches guide the various educational processes at all times, imbuing themselves with the competencies that students are expected to develop.

Under this context, the IES, EEST and CETPRO mainstream the rights approach in institutional management, institutional culture and equal and comprehensive training, in order to promote equitable treatment, free of stereotypes and prejudices, promoting safe, inclusive environments, free from all types of violence and discrimination.

- Have specific measures been adopted for climate displaced persons?

No

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

About the process of validation of skills (acquired through studies or in the workplace) in Technological Higher Education

- [?] According to article 29 of the Regulation of Law 30512 (approved by DS N° 010-2017-MINEDU) validation is the process through which the IES or EEST recognize the capabilities acquired by a person with respect to a competence, both in the institutions educational or in the workplace, duly certified by an authorized institution.

- [?] Likewise, section 29.2 states that the IES and the EEST establish in their Institutional Regulations those aspects that they consider necessary to carry out the validation processes, as well as the corresponding requirements.

- [?] In accordance with this, section 12.3 of the LAG specifies the procedure to follow for the correct validation process, emphasizing some important aspects, such as:

● [?] Validation alone does not lead to obtaining a degree or certificate, it allows the continuity of studies with respect to a specific study plan.

● [?] Students require a validation of their studies after being admitted by the institution, through an application addressed to the director.

● [?] There are two types of validation: between study plans and by units of competence, however, in any case, the institution carries out a comparative analysis of the didactic units or units of competence that, for the purposes of validation, must have similar contents and have the same level of complexity.

● [?] For the process to be completed, the validations must be registered by the institution, which will issue a Directorial Resolution containing, at a minimum, the student's data, the validated didactic units or units of competence and the corresponding justification. Likewise, the complementary training route must be recorded.

However, it should be noted that, although the scope of application of Law 30512 includes national and foreign institutes and schools, the LAG does not establish the specific technical procedure that the IEST and EEST must follow in order to carry out the validation process of the studies carried out in institutes and higher schools abroad. This is a pending task, since to make it viable, the corresponding information and quality verification conditions must be generated. On the other hand, the validation processes is currently regulated. The process is focused on the EST curricular framework applicable to the Peruvian case, which is why a process of validation of learning carried out abroad still presents challenges that must be faced.

People with disabilities: [Legislation provides for their right to education]

Yes

People with disabilities: [Policy measures aim to enhance their right to education]

No

People with disabilities: [Inclusion in mainstream schools is ensured]

No

People with disabilities: [Special schools are used as resource centers to inclusive schools]

No

People with disabilities: [Positive or affirmative action measures are provided]

No

People with disabilities: [Financial incentives and fellowships are provided]

No

People with disabilities: [Mainstream teachers are specifically trained on disabilities]

No

People with disabilities: [Teachers are trained to combat stigmatisation]

Yes

People with disabilities: [Auxiliary assistance is provided]

No

People with disabilities: [Curricula and teaching and learning methods are adapted]

No

People with disabilities: [Curricula are rid of all stereotypes and bias]
Yes
People with disabilities: [Education infrastructure and learning materials are adapted]
Yes
People with disabilities: [Other]

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Regarding the legislation that contemplates the right to education of people with disabilities

The regulatory documents regulate Higher Technological and Technical-Productive Education incorporate provisions for the implementation of transversal approaches, among which is the disability approach. In that sense we have:

- [?] Law No. 30512, Law on Institutes and Schools of Higher Education and the public career of their teachers, which establishes in its article 14 that the IES and EES incorporate alternative means of information and communication in all admission processes and carry out the respective adaptations or reasonable adjustments in the admission exam for people with disabilities.

- [?] The Regulation of Law No. 30512 (approved by Supreme Decree No. 010-2017-MINEDU), in whose article 17 states that training in IES and EEST is developed taking into account the approaches of equal opportunities, the Rights Humans, Environment, Disability, Gender and Interculturality.

Likewise, in its article 25, paragraph 25.3, it states that the IES and the EES guarantee the provisions of Law No. 29973, General Law of Persons with Disabilities.

- [?] Likewise, the "General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education" (Vice-Ministerial Resolution No. 049-2022-MINEDU) and the "General Academic Guidelines for Technical-Productive Education Centers" (Resolution Vice ministerial No. 188-2020-MINEDU), in the description of their pedagogical approach, they emphasize that educational institutions must respond to the purposes, educational policies and transversal approaches, such as the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach, environmental approach, intergenerational approach, disability and differential approach, among others that it considers relevant.

- [?] On the other hand, according to article 41 of Legislative Decree No. 1375, which modifies various articles of Law No. 28044, General Education Law, on Technical - Productive Education and dictates other provisions, one of the objectives of Technical Education - Productive (ETP) is to serve vulnerable populations (including people with disabilities) with educational services that enable them to work dependently or independently.

- [?] In addition, article 98 of the University Law establishes that "persons with disabilities have the right to a reserve of 5% of the vacancies offered in their admission procedures". It also states in Article 100, on the rights of students, that they must have environments, facilities, furniture and equipment that are accessible to persons with disabilities. Similarly, Article 129 states that "universities implement all the services they provide considering the integration of persons with disabilities into the university community, in accordance with Law 29973, General Law for Persons with Disabilities".

Regarding the training that teachers receive to fight against stigmatization

In the year 2023, jointly with the Directorate of Special Basic Education of the Ministry of Education, and with the aim to generating reflection on the value of diversity in education, as well as rethinking current pedagogical practices with the objective to build friendly educational environments with the fewest possible barriers to learning, 6 virtual technical assistance sessions on Inclusive Education were carried out, with an emphasis on disability.

They were aimed at managers, teaching staff and coordinators and/or those responsible for Welfare and Employability Units and/or similar areas of the public and private Institutes of Higher Technological Education (IEST) at the national level, of the Higher Training Schools. Public and private Artistic Education Centers (ESFA) and public Technical-Productive Education Centers (CETPRO) at the national level.

In total, 305 institutions participated, represented by 1,017 people who attended on the different dates of the technical assistance.

Regarding study plans free of stereotypes and prejudices

It should be noted that the study programs of Technical-Productive and Higher Technological Education applied with technical feature, respond to a set of competencies that are required in the labor market, for this, the implemented study plans they must contemplate technical or specific competencies and competencies for employability, incorporating the learning contents necessary for their development, which ensure the comprehensive training of students with social and employment values, which allow them to adapt and insert themselves into a specific work space, to perform a specific function.

Notwithstanding this, in accordance with the "General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools" and the "General Academic Guidelines for Technical-Productive Education Centers", the public IES, EEST and CETPRO They must respond to the purposes, educational policies and transversal approaches, such as: the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach, environmental approach, intergenerational approach, disability and differential approach, among others that you consider relevant; which are indicated in the description of its pedagogical approach. These approaches guide the various educational processes at all times, imbuing themselves with the competencies that students are expected to develop.

Under this context, the IES, EEST and CETPRO mainstream the disability approach in institutional management, institutional culture and equal and comprehensive training, in order to promote equitable treatment, free of stereotypes and prejudices, promoting safe, inclusive environments, free from all types of violence and discrimination.

Regarding educational infrastructure

In literal d) of section 6.1.6 of the regulatory document called "Basic Quality Conditions for Higher Education Institutes and Schools of Higher Technological Education", approved by Vice-Ministerial Resolution No. 103-2022-MINEDU, dated 18 August 2022, it is noted that the educational institution must ensure the provision of hygienic services for students, teachers, administrative staff and people with disabilities, in conditions of accessibility, health and safety, in compliance with the standards of the National Building Regulations, and others that apply, ensuring the conditions of habitability, safety and accessibility in accordance with the capacity of the premises and in accordance with Technical Standard A.120 "Universal Accessibility in Buildings" of the National Building Regulations, approved by Ministerial Resolution No. 075-2023-HOUSING

Likewise, with regard to the physical infrastructure for the provision of the educational service in the Institutes of Higher Education and the Schools of Higher Technological Education, in Verification Means 22 of Annex II of the aforementioned regulatory document, it is established that the conditions of Accessibility must allow all occupants of the premises, including those with disabilities, to independently access the facilities of the premises (environments, basic complementary educational services, library, administrative environments and hygienic services, among others).

Regarding "Educational infrastructures and teaching materials are adapted"

The Institutional License Renewal Model for Universities determines the Basic Quality Conditions (CBC). The CBC are a set of minimum standards that a university must meet in order to obtain and maintain its license to operate. These conditions are designed to ensure that all universities provide quality education and guarantee the right to education for all students, including those with disabilities.

- Condition 1. Strategic Management and Institutional Support

Component 1.8. Physical and technological infrastructure: Seeks to ensure and consolidate the availability of physical and technological resources, in a safe and sustainable manner, to enable the fulfillment of institutional purposes.

To this end, the universities are required to submit a descriptive report and/or analysis showing that the premises are accessible to persons with disabilities, that they have exclusive uses and/or are compatible with the purposes of the university, that they are expressly designed or duly adapted to provide the university higher education service and that they comply with current building regulations, actions to progressively make the infrastructure accessible to persons with disabilities, have a design adapted to provide the educational service and comply with current building regulations.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Currently, there are no specific regulatory provisions for the development of inclusive education, with emphasis on the disability approach, as well as guidelines regarding the implementation of the Universal Design for Learning, reasonable adjustments, educational supports, among other relevant measures. and necessary for the educational services of productive technical and higher technological and artistic education.

Likewise, there is no clear route for the hiring process of transdisciplinary personnel (psychologist, linguistic models, Peruvian sign language interpreter and interpreter guide for deafblindness, among others) in technical-productive, higher technological and artistic higher education institutions.

Students from poor households: [Financial incentives and fellowships for school enrolment are provided]

No

Students from poor households: [Transport, meals and education material are subsidised or provided free of charge beyond compulsory education]

No

Students from poor households: [Positive or affirmative action measures are provided]

No

Students from poor households: [Teachers are trained to combat stigmatisation]

No

Students from poor households: [Curricula are rid of all stereotypes and bias]

No

Students from poor households: [Other]
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:
- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation[1] and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education[2]. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”. - Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked): [1] Which states that “ECCE is part of the right to education and the main foundation for holistic human development”. [2] Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE” [Prior to pre-primary education, ECCE services are free]
No
2.1 Early childhood care and education For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation[1] and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education[2]. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”. - Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked): [1] Which states that “ECCE is part of the right to education and the main foundation for holistic human development”. [2] Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE” [Prior to pre-primary education, ECCE services are affordable]
No
2.1 Early childhood care and education For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation[1] and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education[2]. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”. - Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked): [1] Which states that “ECCE is part of the right to education and the main foundation for holistic human development”. [2] Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE” [ECCE services are accessible on a non-discriminatory basis]
No

2.1 Early childhood care and education For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation[1] and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education[2]. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”. - Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked): [1] Which states that “ECCE is part of the right to education and the main foundation for holistic human development”. [2] Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE” [ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.]

No

- Please elaborate further on the measures taken:

Is compulsory and free of charge pre-primary education available? [Pre-primary education is compulsory.]

No

Is compulsory and free of charge pre-primary education available? [Pre-primary education is not compulsory.]

No

Is compulsory and free of charge pre-primary education available? [Pre-primary education is free of charge for all.]

No

Is compulsory and free of charge pre-primary education available? [Pre-primary education is not free.]

No

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Limited access]

No

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Issues of equity and inclusion]

No

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Poor quality programmes]

No

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Poor learning outcomes]

No

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Low number of professionally trained educators]

No

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Lack of support to families]

No

- What challenges were encountered in realizing early childhood care and education and pre-primary education? [Other]

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.” Primary education - Please provide the age of enrolment and duration of primary education:

- Is primary education compulsory and free of charge? [Primary education is compulsory]

No

- Is primary education compulsory and free of charge? [Primary education is not compulsory.]

No

- Is primary education compulsory and free of charge? [Primary education is free of charge.]

No

- Is primary education compulsory and free of charge? [Primary education is not free.]

No

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing primary education? [Limited access]

No

- What challenges were encountered in realizing primary education? [Issues of equity and inclusion]

No

- What challenges were encountered in realizing primary education? [High dropout rates]

No

- What challenges were encountered in realizing primary education? [Poor quality programmes]

No

- What challenges were encountered in realizing primary education? [Poor learning outcomes in foundation literacy]

No

- What challenges were encountered in realizing primary education? [Poor learning outcomes in numeracy]

No

- What challenges were encountered in realizing primary education? [Poor learning outcomes in social and emotional learning]

No

- What challenges were encountered in realizing primary education? [Other poor learning outcomes]

No

- What challenges were encountered in realizing primary education? [Disparity in learning outcomes]

No

- What challenges were encountered in realizing primary education? [Low number of professionally trained teachers]

No

- Please elaborate. Brief quantitative information may be added.

Secondary education In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training. - Please provide the age of enrolment and duration of lower secondary education:

- Please provide the age of enrolment and duration of upper secondary education:
- Is lower and upper secondary education compulsory and free of charge? [Lower secondary education is compulsory.]
No
- Is lower and upper secondary education compulsory and free of charge? [Lower secondary education is not compulsory.]
No
- Is lower and upper secondary education compulsory and free of charge? [Lower secondary education is free of charge.]
No
- Is lower and upper secondary education compulsory and free of charge? [Lower secondary education is not free of charge.]
No
- Is lower and upper secondary education compulsory and free of charge? [Upper secondary education is compulsory.]
No
- Is lower and upper secondary education compulsory and free of charge? [Upper secondary education is not compulsory.]
No
- Is lower and upper secondary education compulsory and free of charge? [Upper secondary education is free of charge]
No
- Is lower and upper secondary education compulsory and free of charge? [Upper secondary education is not free of charge.]
No
- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.
- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education: For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.
- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:
- What challenges were encountered in realizing secondary education? [Limited access]
No
- What challenges were encountered in realizing secondary education? [Issues of equity and inclusion]
No
- What challenges were encountered in realizing secondary education? [High dropout rates]
No
- What challenges were encountered in realizing secondary education? [Poor quality programmes]
No
- What challenges were encountered in realizing secondary education? [Poor learning outcomes]
No

- What challenges were encountered in realizing secondary education? [Low readiness of primary graduates]

No

- What challenges were encountered in realizing secondary education? [Low number of professionally trained teachers]

No

- What challenges were encountered in realizing secondary education? [Other]

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Higher education is free of charge]

Yes

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)]

No

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Higher education is accessible through financial incentives and scholarships]

No

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Higher education is accessible through positive or affirmative action measures]

No

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Higher education is accessible through credit transfer system between states]

No

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).]

Yes

2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”. [2] Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”. [Other]

Article 100 of the University Law establishes that students have the right to free tuition at public universities. In this regard, it specifies that, in the case of public universities, free tuition is guaranteed for the study of a single career. It also adds that the bachelor has the right to free tuition for counseling, preparation and submission of the thesis for obtaining the professional degree, for one time only.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

The Law N° 30220, University Law

Regarding the free nature of technological higher education

The Public Institutes of Higher Technological Education (IEST) have economic, administrative and academic autonomy; These autonomies are framed in the parameters established in Law No. 30512. The public and private IES and EES have the obligation to publish on their institutional portals, permanently and updated, a list of rights, rates, pension amounts or other payments that students must make of all kinds, which are regulated in the institutional regulations.

On the other hand, from the General Directorate of Technical-Productiva and Higher Technical and Artistic Education (DIGESUTPA), within the framework of the Budget Program 0147 for the Strengthening of technological higher education, pedagogical interventions have been implemented since 2018, through transfers to Regional Governments in various components, which allow shortening the gaps in Basic Quality Conditions (CBC) in the 343 public technological institutes in the country for 31 million soles. With reference to the payment of basic services, platform and virtual library, improvement of connectivity, and for the first time this year, a budget for the maintenance of educational equipment and infrastructure in the 23 public IESTs has been achieved for Metropolitan Lima.

Likewise, through transfers to regional governments, the Minedu will finance the execution of investments that contribute to the improvement of the infrastructure, furniture and/or educational equipment of public technological and pedagogical higher education institutions, within the framework of the licensing process, with a total financing of S/ 147,347,634. 33, which will benefit 33 technological institutes this year.

Payment of allowances, bonuses and social benefits to technological higher education teachers

The Directorate of Services of Technical-Productive and Higher Technical and Artistic Education (DISERTPA) manages the transfers of items in the Public Sector budget in favor of the Regional Governments to finance the payment of assignments, benefits and exceptional bonuses of teachers in the Public Teaching Career, contracted teachers, assistants and auxiliaries hired from public higher education institutes (IES) and higher education schools (EES), within the framework of Law No. 30512, Law on higher education institutes and schools and the public career of their teachers.

Multiple and flexible learning paths

The current regulations that regulate Technical - Productive and Higher Technological Education contain provisions that guide the implementation of the modalities of the educational service as well as the academic processes that guarantee continuity in the training process. In this sense, the following is available:

- [X] The Regulation of Law No. 30512, approved by DS No. 010-2017-MINEDU, in its article 16 establishes three modalities of the educational service in the IES and EEST: face-to-face, blended and distance learning, whose specific conditions are detailed in the section 11 of the "General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education" (hereinafter LAG of IEST).

- [X] For its part, Supreme Decree No. 004-2019-MINEDU, Supreme Decree that modifies the Regulation of Law No. 28044, General Education Law, approved by Supreme Decree No. 011-2012-ED, and adapts it to The provisions of Legislative Decree No. 1375, which modifies various articles of Law No. 28044, on technical-productive education and dictates other provisions, in its article 90-A establishes three modalities of educational service in CETPRO: face-to-face, blended and distance, whose specific conditions are detailed in section 10 of the "General Academic Guidelines for Technical-Productive Education Centers" (hereinafter LAG of CETPRO).

- [X] Article 28 of the Regulations of Law No. 30512 establishes that reinstatement is a process by which the applicant or student returns to the IES or the EES once their registration or study license reservation period has expired. If there is any variation in the study plans, once the student rejoins, the corresponding validation processes are applied.

- [X] For its part, article 95-C of Supreme Decree No. 004-2019-MINEDU establishes what refers to the reincorporation process in CETPRO, whose specifications are detailed in section 11.4 of the CETPRO LAG.

- [X] Article 29 of the Regulation of Law No. 30512, establishes that validation is the process through which the IES or EEST recognize the capabilities acquired by a person with respect to a competence, both in educational institutions or in the workplace, duly certified by an authorized institution. In accordance with this, section 12.3 of the IEST LAG specifies the procedure to follow for the correct validation process.

- [X] For its part, article 98 of Supreme Decree No. 004-2019-MINEDU establishes what refers to the validation process in CETPRO, which is detailed in section 11.5 of the CETPRO LAG.

Likewise, there are provisions that regulate the transitivity process, such as RVM No. 176-2021-MINEDU, which allows people to move between the different offers and between the different training levels, through the process of recognition of their learning. (Recognition).

- What challenges were encountered in realizing higher education? [Limited access]

Yes

- What challenges were encountered in realizing higher education? [Issues of equity and inclusion]

Yes

- What challenges were encountered in realizing higher education? [Poor quality programmes]

No

- What challenges were encountered in realizing higher education? [Poor learning outcomes]

No

- What challenges were encountered in realizing higher education? [Low number of professionally trained professors]

No

- What challenges were encountered in realizing higher education? [Insufficient mechanisms to ensure smooth transition from secondary to tertiary]

Yes

- What challenges were encountered in realizing higher education? [Other]

- Please elaborate. Brief quantitative information may be added.

Regarding limited access and the lack of mechanisms that guarantee the smooth transition from secondary to higher education

Modalities of the educational service: In IES and EEST, public IESTs only have the face-to-face modality authorized, which limits the development of the training offer.

Validation process: In the IES, since 2019, the process of updating their study plans has been developing, with the aim of ensuring that they are aligned with the National Catalog of Training Offers (CNOF), this process generates changes in their curriculum, which means that many students must undergo validation processes between study plans - especially in those cases where they wish to rejoin the educational institution after a prolonged period of time - causing certain doubts on the part of the educational institution. how to carry out validation.

Walkability process

Regarding the passability process, the following difficulties have arisen:

-☒The regulatory framework of productive technical and higher technological education limits the recognition of learning in other curricular areas of basic education, since it only specifies the curricular area of education for work.

-☒The access of basic education students with technical training to technological higher education through an ordinary exam generates discouragement, because they do not find a different value from having been trained in a technical specialty. To this end, a modification is being proposed in our rules, so that they can be admitted through an extraordinary exam.

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Provision of education for persons who have not received or completed the whole period of their primary education]

Yes

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Provision of literacy programmes]

Yes

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)]

Yes

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Provision of free of charge learning opportunities]

No

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Provision of professional training including reskilling and upskilling programmes]

No

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Recognition, validation and certification of non-formal and informal learning]

Yes

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Provision of free of charge career guidance and counselling]

No

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Lifelong learning entitlements including learning accounts, vouchers, etc.]

No

2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked): [Other]

Alternative Basic Education (EBA)

- Please elaborate further on the measures taken:

Regarding offering education for people who have not attended or completed the full cycle of primary education

Technical-Productive Education (ETP) is developed in the Technical-Productive Education Centers (CETPRO), which offer educational services aimed at the development of entrepreneurial capabilities and work skills that respond to the needs of the productive sector, are complemented through training experiences in real work situations.

It should be noted that the ETP serves a student population from the age of 14, and is organized in two cycles: Technical Auxiliary Cycle, where students develop skills that allow them to perform less complex work in the production process, and the Technical Cycle, where students develop skills that allow them to perform effectively in a work environment in a specific function, controlling and supervising their own tasks and activities, identifying technical problems and executing specific corrective actions.

To enroll in a study program offered at a CETPRO, for the Technical Auxiliary Cycle, you must be at least 14 years old and it is not necessary to have completed any formal educational level. In the case of the Technical Cycle, the minimum age of 14 years and having completed Primary Education or the Intermediate Cycle of Alternative Basic Education is required.

Under this context, the ETP is presented as a flexible and easily accessible training modality, and also contributes to the people who were stimulated in the CETPRO to develop entrepreneurship skills, which will favor their access to job opportunities and improvement of their skills. income.

Regarding recognizing, validating and certifying non-formal and informal learning

The General Academic Guidelines for the CETPRO, approved with RVM No. 188-2020-MINEDU, establishes the validation process through which a CETPRO recognizes the skills, abilities and performances acquired by a person in the educational or work field. Validation recognizes one or more teaching units or training modules and allows the continuity of studies with respect to a specific study plan. Validation can be carried out under different modalities: Recognition of prior learning, Validation between study plans and Validation by units of competence.

Recognition of prior learning is carried out when a CETPRO recognizes learning previously achieved within or outside the institutions of the Educational System, as long as these are linked to the competency units of a study program.

Validation between study plans is carried out when the following conditions are present: 1. Change of study plan, it is for students who began their studies with a study plan that has lost validity and must continue with a new plan, in which same or another authorized or licensed CETPRO. 2. Change of study program, when a student transfers to another study program at CETPRO or another formally authorized or licensed one.

Validation by units of competence is carried out when the following conditions are present: Certification of labor competencies and Modular Certification.

-☐The Certification of labor competencies: The unit of labor competency described in the certificate of labor competency is validated, with the unit of competency associated with a study program. At the time of validation, the labor competency certificate must be valid and must be issued by an authorized certification center.

-☐Modular certification: The unit of competency or units of competencies, if applicable, described in the modular certificate, are validated with the unit of competency associated with a study program. At the time of validation, the study program associated with the modular certificate, as well as the unit of competence to be validated, must be authorized or licensed.

Validation with Basic Education, in this modality, the performances acquired by a student throughout their training are validated. To do this, the student must have their modular certificate issued by the educational institution.

Regarding offering continuous training (such as training programs to acquire knowledge, skills, abilities or competencies for personal and professional development)

Technical-Productive Education (ETP), in the General Academic Guidelines for the CETPRO, approved with RVM No. 188-2020-MINEDU, contemplates that the CETPRO can develop continuous training programs (PFC), through which a comprehensive and permanent educational process that develops throughout life. The PFC's objective is to acquire, perfect or update knowledge, skills, personal and/or professional abilities, to improve work performance. The PFC are provided in face-to-face, blended or distance modalities and do not require authorization from the Local Management Units (UGEL). The PFC does not lead to obtaining an academic degree or title, but can be validated if it corresponds to a training module of one of the study programs that CETPRO offers.

Regarding to the University Law

Article 46 of the University Law establishes that universities must develop continuing education academic programs that seek to update professional knowledge in theoretical and practical aspects of a discipline, or to develop and update certain skills and competencies of graduates. These programs are preferably organized under the credit system. They do not lead to degrees or

diplomas, but they do certify those who complete them with a passing grade.

- What challenges were encountered in realizing adult learning and education? [Limited access]

No

- What challenges were encountered in realizing adult learning and education? [Issues of equity and inclusion]

No

- What challenges were encountered in realizing adult learning and education? [Poor quality programmes]

No

- What challenges were encountered in realizing adult learning and education? [Limited funding]

Yes

- What challenges were encountered in realizing adult learning and education? [Poor learning outcomes]

No

- What challenges were encountered in realizing adult learning and education? [Low number of professionally trained educators]

No

- What challenges were encountered in realizing adult learning and education? [Other]

Alternative Basic Education (EBA, because of Spanish Acronym) The Directorate of Basic Education (DEBA) implements the Literacy Program according to the provisions of RVM 057-2022-MINEDU and the curricular program for the initial and intermediate cycles of ABE, based on the budget allocated by Pliego 10: Ministry of Education. The Literacy Program provides educational services for the initial (1st and 2nd grades) and intermediate (1st, 2nd and 3rd grades) cycles of ABE, which are organized by periods of attention, with a minimum duration of five (5) months for each grade. The literacy program as a human development process contributes to the development and strengthening of competencies of people from fifteen (15) years of age and older who are not literate and have incomplete primary education, considering the ABE Curricular Program of the initial and intermediate cycle. The attention is being provided in 15 regions nationwide with the initial and intermediate cycle, with a number of 21,071 students enrolled in 1,399 learning circles, recognized as peripheral classroom of the CEBA closest to their jurisdiction.

- Please elaborate. Brief quantitative information may be added.

R.VM. N° 057 MINEDU "Guidelines for the development of the Alternative Basic Education Literacy Program".

R.VM. N° 034-2019-MINEDU - Approves the "Curricular Program of Alternative Basic Education of the Initial and Intermediate Cycles" and the "Curricular Program of Alternative Basic Education of the Advanced Cycle".

RSG N° 613 2014 MINEDU Approve the technical norm called "norms and guidelines for the organization and operation of the form of distance attention in the advanced cycle of public and private alternative basic education centers".

RM N 427 2014 Approve Directive No. 020-2013-MINEDU/BMGP-DIGEBA, called "Orientations for developing semi-presential attention in alternative basic education centers", which is an integral part of this resolution.

3. Quality education provision and learning environment

3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [State monitoring and inspections]

Yes

3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [Health and sanitation]

Yes

3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))]

No

3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [Infrastructure]
Yes
3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [Curriculum]
Yes
3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [Student-teacher ratio]
No
3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [School fees (if relevant)]
No
3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding: [Other]

- Please elaborate on each of the measures taken:

Regarding state control and inspections

• [?] Law No. 30512, Law on Higher Education Institutes and Schools and the Public Career of their Teachers, establishes in its article 115 the supervision and inspection of Higher Education Institutes and Schools. Regarding supervision, it is noted that it includes actions aimed at surveillance, monitoring, follow-up and verification, in order to ensure compliance with the provision of the educational service, in accordance with the national regulations and policies of the Education sector, in the basic quality conditions of Higher Education of public and private IES and EES. For its part, regarding inspection, it is noted that it includes evaluation and control actions aimed at identifying and investigating the commission of possible administrative infractions and imposing the respective sanctions on public and private IES and EES.

• [?] Article 15 of the University Law establishes the functions of the National Superintendence of University Higher Education (SUNEDU), among which are: 15.4 To supervise the quality of educational services within the scope of its competence, considering the regulations established on the matter; 15.5 To regulate and supervise the basic quality conditions required for the operation of universities and affiliates; and, 15.6 To supervise compliance with the minimum requirements for the granting of degrees and titles of university rank within the framework of the conditions established by law.

Regarding health

The Regulations of Law No. 30512, Law of Higher Education Institutes and Schools and the Public Career of their Teachers, regulated by Supreme Decree No. 010-2017-MINEDU and its amendments, in sections 59.1.8, 59.3. 9, 59.5.12 and 59.6.13 of its article 59, considers as a requirement for the licensing of Institutes and Schools of Higher Education, the existence and availability of basic complementary educational services, within which is the medical service (topic), which must be located within the main headquarters, subsidiaries and premises where the service is carried out, must be in habitable, safe and accessible conditions and, in addition, must be in charge of a health professional.

Regarding sanitation

The aforementioned Regulation of Law No. 30512, in section 4 of literal a) of numerals 59.1.5 and 59.3.6. of its article 59, provides as a requirement for the licensing of Institutes and Schools of Higher Education, the existence of basic services, which include operational services of drinking water, drainage and provision of hygienic services, available in all premises, including the headquarters. principal and subsidiaries.

Regarding infrastructure

The infrastructure must meet the conditions of habitability, accessibility and safety, for the proper functioning and safeguarding of the students and staff who work in the institutions, in accordance with the provisions of the regulations of the sector: Technical Standard: "General Design Criteria for Educational Infrastructure" approved by RVM No. 010-2022-MINEDU and the Technical Standard: "Design Criteria for Institutes and Schools of Higher Technological Education" approved by RVM No. 140-2021-MINEDU, and national regulations: National Building Regulations .

Likewise, within the framework of the licensing process, the IEST must comply with the regulations described, in accordance with the "Basic Quality Conditions for Higher Education Institutes and Schools of Higher Technological Education" approved by RVM No. 103-2022. -MINEDU.

Likewise, in-person technical assistance was provided to the Public IESTs with the purpose of providing recommendations under the current regulatory framework and to condition their existing infrastructure in order to comply with the conditions of habitability, accessibility and safety.

• [?] On the other hand, at university level: Institutional License Renewal Model

The basic quality condition 1 for universities, with its component 1.8. Physical and technological infrastructure, seeks to ensure and consolidate those resources are available at the physical and technological level, in a safe and sustainable manner, that allows the fulfillment of the institutional purposes.

To this end, universities are required to provide a descriptive report and/or analysis that demonstrates that the premises are accessible to persons with disabilities, that they have exclusive uses and/or are compatible with the purposes of the university, that they are expressly designed or duly adapted to provide the university higher education service and that they comply with current regulations on buildings, actions to progressively make the infrastructure accessible to persons with disabilities, have a design adapted to provide the educational service and comply with current regulations on buildings.

Regarding the study plans

Law No. 30512, Law on Higher Education Institutes and Schools and the Public Career of Their Teachers, establishes in its article 25 the procedure and requirements for the licensing of public and private IES and EES, their study programs and of its

subsidiaries, in which it indicates that institutions must have physical infrastructure, equipment and resources for adequate learning, such as libraries, laboratories, and others pertinent to the development of educational activities.

On the other hand:

The DEBA implements the Literacy Program according to the provisions of RVM 057-2022-MINEDU and the curricular program for the initial and intermediate cycles of ABE, based on the budget allocated by Pliego 10: Ministry of Education. The Literacy Program provides educational services for the initial (1st and 2nd grades) and intermediate (1st, 2nd and 3rd grades) cycles of ABE, which are organized by periods of attention, with a minimum duration of five (5) months for each grade. The literacy program as a human development process contributes to the development and strengthening of competencies of people fifteen (15) years of age and older who are not literate and have incomplete primary education, considering the ABE Curricular Program of the initial and intermediate cycle. The attention is being provided in 15 regions nationwide with the initial and intermediate cycle, with a number of 21,071 students enrolled in 1,399 learning circles, recognized as a peripheral classroom of the CEBA closest to their jurisdiction.

It serves MSE:

- Older Adults (PAM) in the Lima region.
- Population of Persons Deprived of Liberty (PPL) in 9 regions.

- What challenges were encountered in realizing quality education? [Non-supportive or inadequate learning environments]

No

- What challenges were encountered in realizing quality education? [Violence in schools]

Yes

- What challenges were encountered in realizing quality education? [Cost of education]

No

- What challenges were encountered in realizing quality education? [Conflicts or crises]

No

- What challenges were encountered in realizing quality education? [Low quality educational infrastructure and materials]

Yes

- What challenges were encountered in realizing quality education? [Inadequate parental support to education]

No

- What challenges were encountered in realizing quality education? [Long distances to schools]

Yes

- What challenges were encountered in realizing quality education? [Other]

Lack of accessibility for people with disabilities Properties that require sanitation Physical infrastructure that requires intervention or at risk of flooding DEIB teacher gap This is the deficit of teachers with a teaching degree/professional degree, represented by the sum of the positions occupied by monolingual Spanish-speaking teachers or teachers who do not speak the language of the students, bilingual teachers without a teaching degree and the number of new positions required to meet the demand of the school population of the IBE educational institutions. Currently, the State is promoting the Intercultural Bilingual Education educational service in 26,541 registered IBE institutions, which constitute 32% of the country's IIEEs. These institutions serve 20.8% of the students in Peru in one of the 42 native languages served by the DEIB; therefore, this is a significant number that requires adequate attention from all the Education sector agencies, especially in continuous training and teacher development. Likewise, there is a growing demand to the State by organizations of indigenous or native peoples, both from the Amazon and Andean areas; they require a significant improvement of the educational service in intercultural and bilingual schools, recognizing as a key factor to have qualified teachers, that is, teachers trained in IBE and fluent in the languages spoken by the students. Access to information: <https://drive.google.com/drive/folders/1TrhrwUNsoKokoOnxWHqKXaSPVWOFNspp?usp=sharing>

- Please elaborate. Brief quantitative information may be added.

- ☐ Lack of accessibility for people with disabilities to the different learning environments, since the laboratories and/or practice workshops are located on upper floors that can only be accessed by stairs.
- ☐ Unsanitized properties, which makes it difficult for Regional Governments to intervene in new infrastructure.
- ☐ Comprehensive physical infrastructure that has reached its useful life and needs new intervention.
- ☐ Physical infrastructure in regions at risk of flooding due to rain, in which the implementation of gutters, ditches and/or different types of drainage with adequate dimensions that allow the flow of water to be channeled, avoiding flooding during peak seasons has not been planned. rains.
- ☐ Little budget for the maintenance of physical infrastructure (maintenance of the electrical system, health system, change of coverage, among others) that has reached its useful life period.
- ☐ Little budget for the equipment of laboratories and specialization workshops.
- ☐ Institutions operating in housing that are not suitable for education and do not meet infrastructure standards.

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Teacher training is provided without discrimination.]

No

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).]

No

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Initial training and continuous professional development are provided.]

No

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Minimum standards and qualifications required for the teaching profession.]

Yes

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Measures taken to strengthen the social status and attractiveness of the teaching profession.]

Yes

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.]

No

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Establishment of performance monitoring systems.]

Yes

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Measures taken to increase women in leadership positions in education.]

No

3.2 Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked): [Other]

Chapter VIII of the University Law is dedicated to teachers, which defines the functions of teachers, the requirements for the exercise of teaching, the admission and promotion process in the teaching career, the evaluation period for the appointment and dismissal of regular teachers, as well as the rights and duties of teachers. Particularly, Article 82 of the aforementioned law specifies that, in order to teach at the university, as a regular and contracted teacher, it is mandatory to possess: -The Master's degree for training at the undergraduate level. - The Master's or Doctor's degree for master's degrees and specialization programs. - The degree of doctor for training at the doctoral level. To this it adds that "extraordinary professors may teach at any level of university higher education and their characteristics are established by the Statutes of each university".

- Please elaborate on each of the measures taken: Regarding the requirement of minimum requirements and qualifications for the teaching profession Law No. 30512, Law of Higher Education Institutes and Schools and the Public Career of their teachers, establishes in paragraph 69.1 of article 69 the minimum requirements to access the first category in IES, specifying the following: - ☐ Academic degree or title equivalent to the degree or title of the training program in which you will work. - ☐ Two years of work experience in your specialty or in the subject to be performed. - ☐ At least one year of teaching experience in higher or technical-productive education. For its part, the Regulation of Law No. 30512, approved by Supreme Decree 010-2017-MINEDU, regulates in its article 120 the minimum requirements to access categories 2,3,4 and 5 in IES, while article 121 regulates the requirements to access categories 2,3 and 4 in EEST. Regarding the measures adopted to improve the social prestige and attractiveness of the teaching profession In 2022, 2 increases were managed to the Comprehensive Higher Monthly Remuneration (RIMS) of higher education teachers, which were authorized through the following regulatory documents: - ☐ Supreme Decree 118-2022-EF, dated 06/11/2022, with which the amount of the RIMS is updated to S/ 65.78. - ☐ Supreme Decree 238-2022-EF, dated 10/13/2022, with which the amount of the RIMS is updated to S/ 69.37. Regarding performance monitoring systems Law No. 30512 established in its article 72 the permanence evaluation for teachers of the CPD of public IES and EES, specifying that it is carried out on a mandatory basis every 3 years, that the teacher who does not pass the ordinary permanence evaluation receives a training to subsequently participate in an extraordinary permanence evaluation. Finally, if the teacher does not pass the extraordinary permanence evaluation, he or she is removed from the teacher's public career. However, said articles were repealed by Law No. 31653, which is why to date the application of an evaluation for teachers of the CPD of technological higher education is not regulated. Regarding contracted teachers, Vice-Ministerial Resolution No. 226-2020-MINEDU and its amendment regulates the process of teacher hiring and renewal; In relation to the teacher renewal process, it specifies that it applies to teachers with a budgeted vacant position who have approved their performance evaluation. In order to participate in the contract renewal process, the teacher must, among others, have passed the teaching performance evaluation. The performance evaluation is carried out within the institution in which the teacher carries out his duties and is in charge of different actors directly linked to the teacher's performance. The following instruments are used for the evaluation: 1. ☐ Institutional compliance report (by the General Director of the IEST). 2. ☐ Portfolio rubric (by the Academic Area Coordinator or whoever acts as second evaluator). 3. ☐ Student survey. After having carried out the entire performance evaluation, the general director of the IEST issues favorable reports for the renewal of who will be the teachers who will renew for the following year and to do so, he takes into account the merit table of the evaluation carried out and always taking into account the number of places available for renewal (60% or 80% of available teaching contract places).
- What challenges were encountered in the education personnel? [Shortages of teaching staff] No
- What challenges were encountered in the education personnel? [Lack of qualified, trained and motivated teaching staff] Yes
- What challenges were encountered in the education personnel? [Lack of training centres] No

- What challenges were encountered in the education personnel? [Low quality educational infrastructure and materials]
No
- What challenges were encountered in the education personnel? [High student – teacher ratio]
No
- Please elaborate. Brief quantitative information may be added.
Regarding the lack of qualified, trained and motivated teaching staff The Regional Directorates of Education present difficulties when they call for competitions for positions for teaching contracts and for pedagogical management positions, because they state that the professionals who reside in the area would not meet the minimum requirements established in the current regulations.
3.3 Respect for human rights and fundamental freedoms For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.[1] Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1. - Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked): [1] Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”. [Curriculum includes human rights education.]
No
3.3 Respect for human rights and fundamental freedoms For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.[1] Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1. - Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked): [1] Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”. [Educational and/or extracurricular activities are organized on human rights education.]
No
3.3 Respect for human rights and fundamental freedoms For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.[1] Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1. - Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked): [1] Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”. [Other]
- Please elaborate on each of the measures taken:

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation explicitly apply to non-state educational institutions. Please specify:]

Yes

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation explicitly apply to non-state educational institutions. Please specify:][Comment]

The scope of application of the regulations that regulate Higher Technological and Technical – Productive Education is for both the public and private sectors. About: -[?]Article 2 of Law No. 30512, Law on Higher Education Institutes and Schools and the public career of their teachers, states that public and private, national and foreign, institutes and schools of Higher Education, which are part of the Law, are included. of the Higher Education stage. -[?]In accordance with this, the Regulation of Law No. 30512, approved with Supreme Decree No. 010-2017-MINEDU, in its article 2 establishes that its scope includes Institutes and Schools of Higher Technological Education, public and private, national and foreigners, licensed by the Education Sector. -[?]The “General Academic Guidelines for Institutes of Higher Education and Schools of Higher Technological Education”, updated by Vice-Ministerial Resolution No. 049-2022-MINEDU, indicate in section 4 that the scope of application includes the Institutes and Schools of Technological Higher Education, public and private. -[?]public Technical-Productive Education Centers and private.

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:]

No

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:][Comment]

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:]

No

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:][Comment]

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:]

Yes

3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors. [Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:][Comment]

Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Registration]
No
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [State monitoring and inspections]
Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Qualifications of teachers]
Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Health and sanitation]
No
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))]
Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Infrastructure]
Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Curriculum]
Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Student-teacher ratio]
No
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [School fees]
No
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [School closures]
Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered: [Other]

- Please elaborate:

Regarding state control and inspections

Law No. 30512, Law on Higher Education Institutes and Schools and the Public Career of Their Teachers, establishes in its article 115 the supervision and inspection of Higher Education Institutes and Schools (IES and EES). Regarding supervision, it is noted that it includes actions aimed at surveillance, monitoring, follow-up and verification, in order to ensure compliance with the provision of the educational service, in accordance with the national regulations and policies of the Education sector, in the basic quality conditions of Higher Education of public and private IES and EES. For its part, regarding inspection, it is noted that it includes evaluation and control actions aimed at identifying and investigating the commission of possible administrative infractions and imposing the respective sanctions on public and private IES and EES. the main headquarters and subsidiaries.

Regarding health, the Regulations of Law No. 30512, Law of Institutes and Schools of Higher Education and the Public Career of Their Teachers, regulated by Supreme Decree No. 010-2017-MINEDU and its amendments, in the numerals 59.1.8, 59.3.9, 59.5.12 and 59.6.13 of its article 59, considers as a requirement for the licensing of Institutes and Schools of Higher Education, the existence and availability of basic complementary educational services, within which finds the medical service (topical), which must be located within the main headquarters, subsidiaries and premises where the service is carried out, must be in habitable, safe and accessible conditions and, in addition, must be in charge of a medical professional.

Regarding sanitation, the aforementioned Regulation of Law No. 30512, in section 4 of literal a) of numerals 59.1.5 and 59.3.6. of its article 59, provides as a requirement for the licensing of Institutes and Schools of Higher Education, the existence of basic services, which include operational services of drinking water, drainage and provision of hygienic services, available in all premises, including the main headquarters and subsidiaries.

Regarding teacher qualifications

Law No. 30512, Law of Higher Education Institutes and Schools and the Public Career of their teachers, establishes in paragraph 69.1 of article 69 the minimum requirements to access the first category in IES, specifying the following:

- ☐ Academic degree or title equivalent to the degree or title of the training program in which you will work.

- ☐ Two years of work experience in your specialty or in the subject to be performed.

- ☐ At least one year of teaching experience in higher or technical-productive education.

For its part, the Regulation of Law No. 30512, approved by Supreme Decree 010-2017-MINEDU, regulates in its article 120 the minimum requirements to access categories 2,3,4 and 5 in IES, while article 121 regulates the requirements to access categories 2,3 and 4 in EEST.

Regarding infrastructure

The aforementioned Law No. 30512, in its article 25, establishes basic quality conditions (CBC) as minimum requirements for the granting of the license for the provision of educational services through Higher Education Institutes and Schools. As part of these CBC, physical infrastructure, environments, equipment and resources for learning are required according to their pedagogical proposal, guaranteeing conditions of safety, accessibility and habitability.

Regarding Study Plans

The Regulation of Law No. 30512, in its article 59, specifies the requirements for the licensing of the IES and the EES. In this regard, in literal a) of section 59.3, it states that the IES must attach the pedagogical proposal, the same as , must be reflected in the program's study plan, which contains the modality (face-to-face or blended), academic credits, training approaches and others linked to the academic regime. Likewise, the IES must prove with documents the availability of virtual platforms or technological educational environments, agreements and/or strategic alliances for job placement and others, for their development, as appropriate. According to the general academic guidelines issued by the Minedu.

Furthermore, within the framework of the provisions of the Eighth Transitional Complementary Provision of the Regulation of Law No. 30512, public IESTs may update the authorized study programs before the Law comes into effect.

Likewise, the "General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education" have as one of their objectives to ensure the development and implementation of relevant and quality study programs for the comprehensive training of students in the institutes and schools.

Regarding school closures

When the renewal of the license or the licensing due to adequacy of IES and EES is rejected, the Technical Standard called "Provisions that regulate the cessation of activities, definitive cessation and closure of Institutes and Schools of Higher

Technological Education”, approved by the Vice-Ministerial Resolution No. 171-2023-MINEDU, which contemplates provisions to safeguard the continuity of the educational service for those students who are studying.

About safe environments free from violence or harassment, including gender-based violence

The regulatory documents that regulate Technological and Technical – Productive Higher Education incorporate provisions for the implementation of transversal approaches, among which is the gender approach, with the purpose of mainstreaming and institutionalizing said approach as a preventive measure that contributes to the eradication of gender-based violence. In that sense we have:

- ☒ The Regulation of Law No. 30512 ((approved by Supreme Decree No. 010-2017-MINEDU), in whose article 17 states that training in IES and EEST is developed taking into account the approaches of equal opportunities, the Rights Humans, Environment, Disability, Gender and Interculturality.

- ☒ Likewise, the “General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education” (Vice-Ministerial Resolution No. 049-2022-MINEDU) and the “General Academic Guidelines for Technical-Productive Education Centers” (Resolution Viceministerial No. 188-2020-MINEDU), in the description of their pedagogical approach, they emphasize that educational institutions must respond to the purposes, educational policies and transversal approaches, such as the rights approach, inclusive approach or attention to diversity, intercultural approach, gender equality approach , environmental approach, intergenerational approach, disability and differential approach, among others that it considers relevant.

- ☒ The “Guidelines for the application of the gender approach in Technical-Productive Education Centers, Institutes and Schools of Higher Education” (approved by Vice-Ministerial Resolution No. 044-2020-MINEDU, dated February 13, 2020). The main objective of these guidelines is to ensure that educational institutions mainstream and institutionalize the gender approach , promoting a culture and training for equal rights for men and women , and free of all forms of discrimination and gender violence in the educational community. promoting personal and professional well-being, as well as the development of the country.

- ☒ The Technical Standard “Provisions for the prevention, attention, monitoring and punishment of sexual harassment in Public and Private Technical-Productive Education Centers and Institutes and Schools of Technological, Pedagogical and Artistic Higher Education”, approved by Ministerial Resolution No. 067- 2024-MINEDU, dated February 13, 2024, aims to establish provisions to regulate the prevention, attention, monitoring and punishment of sexual harassment, in accordance with the provisions of Law No. 27942, Law on the Prevention and Punishment of Sexual Harassment. and its Regulations, approved with Supreme Decree No. 014-2019-MIMP.

- ☒ “Basic quality conditions for Higher Education Institutes and Technological Higher Education Schools”, which contains the schedule for the licensing of private technological institutes, approved with Vice-Ministerial Resolution No. 103-2022-MINEDU of August 18, 2022.

- What challenges were encountered in non-state education provision? [Low quality educational infrastructure and materials]

No

- What challenges were encountered in non-state education provision? [Low number of professionally trained teachers]

No

- What challenges were encountered in non-state education provision? [High student – teacher ratio]

No

- What challenges were encountered in non-state education provision? [Issues in terms of equity and inclusion]

Yes

- What challenges were encountered in non-state education provision? [Weak government regulatory and monitoring capacity]

No

- What challenges were encountered in non-state education provision? [Other]

There is a teaching gap to develop intercultural bilingual education in Andean and Amazonian students.

- Please elaborate. Brief quantitative information may be added.

Regarding issues of equity and inclusion

Currently, there are no specific regulatory provisions for the development of inclusive education, as well as guidelines regarding the implementation of the Universal Design for Learning, reasonable adjustments, educational supports, methodological and curricular adaptations, among other relevant and necessary measures for the provision of educational services of productive technical and higher technological and artistic education.

Likewise, there is no clear route for the hiring process of transdisciplinary personnel (psychologist, linguistic models, Peruvian sign language interpreter and interpreter guide for deafblindness, among others) in technical-productive, higher technological, artistic higher education institutions.

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Digital technology use in education is provided for in the legal framework.]

Yes

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)]

No

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.]

No

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Measures to remove barriers to accessing digital content , including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.]

Yes

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.]

Yes

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education]

Yes

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.]

Yes

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment. [A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.]

No

- Please elaborate on each of the measures taken:

In the Health emergency, the regulatory document called "Guidelines for the implementation of the progressive return to face-to-face and/or blended face-to-face education services in Technical-Productive Education Centers and Higher Education Institutes and Schools, within the framework of the health emergency due to COVID-19" through Vice-Ministerial Resolution No. 037-2022-MINEDU, which states the following:

-☑The implementation of the educational service during the health emergency caused by COVID-19 includes a series of measures aimed at ensuring the continuity of said service in favor of the student and in accordance with the eminently practical training provided in technical-productive education and technological, pedagogical and artistic superior.

-☑This involves implementing the progressive return to in-person and/or semi-in-person education services in a safe, flexible and decentralized manner, respecting the provisions established by the MINSA during the health emergency, and complementing the teaching and learning processes with the use of virtual environments, platforms and/or digital tools, according to the needs of the student and their training; as well as the reality and context of EI.

-☑To do this, the IIEE must plan, organize their activities and optimize their resources, taking into account the characteristics of their environment and their training offer, as well as prepare the spaces for the development of face-to-face activities, guaranteeing the quality of the SE.

On the other hand, the "General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education", updated through Vice-Ministerial Resolution No. 049-2022-MINEDU, in sections 11.3.1. and 11.3.2, indicates the characteristics and quality criteria that Virtual Learning Environments must meet, which are understood as software platforms that facilitate the management of teaching and learning processes, provide digital support to the study programs under the distance modality, allowing the creation and dissemination of content; as well as the implementation of the study plan, taking into account the organization of the program, monitoring and evaluation of the student.

Regarding whether measures have been adopted to eliminate barriers to access digital content

The "General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education", updated through Vice-Ministerial Resolution No. 049-2022-MINEDU, in sections 11.3.1. and 11.3.2, indicates the characteristics and quality criteria that Virtual Learning Environments must meet, which are understood as software platforms that facilitate the management of teaching and learning processes, provide digital support to the study programs under the distance modality, allowing the creation and dissemination of content; as well as the implementation of the study plan, taking into account the organization of the program, monitoring and evaluation of the student.

Regarding the incorporation of digital skills in teacher training plans

The competency framework for the Technological Higher Education teacher (RVM 213-2019-MINEDU) proposes the development of eight competencies, which involve the use of information technologies in a transversal way. To strengthen this competence, the Ministry of Education, through DISERTPA, has designed and implemented three courses in recent years aimed at IEST, CETPRO and ESFA teachers:

-☑Introduction to the use of ICT in the learning process: 5,597 trained teachers

-☑Use of the Google Classroom platform: 4,436 trained teachers

-☑Basic Office Tools Applied to Technical Productive and Higher Technological and Artistic Education: 3,720 trained teachers

Regarding whether they have integrated the necessary skills to adapt to the future in the study plans

The "General Academic Guidelines for Higher Education Institutes and Technological Higher Education Schools", updated through Vice-Ministerial Resolution No. 049-2022-MINEDU, in section 20.3.2, indicate that public HEIs must consider, as minimum, in the formulation of the study plans, the following competencies for employability, which are also related to innovation and entrepreneurship: effective communication, English, information technologies, ethics, problem solving.

Regarding information technology competence, this refers to the management of ICT computer tools to search and analyze information, communicate and carry out procedures or tasks linked to the professional area, in accordance with the requirements of their work environment.

In this sense, public HEIs must consider in their curricular organization, digital content for the development of employability skills related to information technologies.

Regarding whether measures have been adopted to reduce the digital divide

The Regulations of Law No. 30512, Law of Institutes and Schools of Higher Education and the Public Career of Their Teachers, regulated by Supreme Decree No. 010-2017-MINEDU and its amendments, for the licensing of Institutes and Schools of Higher

Education requires, in literal i) of sections 59.1.4 and 59.3.5 of its article 59, the existence of the virtual learning environment for the development of study programs under the blended and/or distance modality, whose characteristics and criteria quality are provided for in sections 11.3.1 and 11.3.2 of the “General Academic Guidelines for Higher Education Institutes and Schools of Higher Technological Education”, updated through Vice-Ministerial Resolution No. 049-2022-MINEDU.

On the other hand, regarding the supply of electricity and internet, the aforementioned Regulation of Law No. 30512, in section 4 of literal a) of numerals 59.1.5 and 59.3.6. of its article 59, establishes as a requirement for the licensing of Higher Education Institutes and Schools, the existence of basic services, within which the operational service of electrical energy and internet is included.

Digital technology use in education is provided for in the legal framework. - Please indicate the relevant text and provisions:

- What challenges were encountered in digital education provision (check all that apply)? [Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways]

No

- What challenges were encountered in digital education provision (check all that apply)? [Lack of equity and inclusion in digital learning solutions]

No

- What challenges were encountered in digital education provision (check all that apply)? [Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks]

No

- What challenges were encountered in digital education provision (check all that apply)? [Limited access to internet and/or electricity]

Yes

- What challenges were encountered in digital education provision (check all that apply)? [Limited access to hardware (devices, chargers, etc.)]

No

- What challenges were encountered in digital education provision (check all that apply)? [Difficulty in regulating the use of digital education solutions]

No

- What challenges were encountered in digital education provision (check all that apply)? [Difficulty in sustainably financing digital education solutions at national scale]

No

- What challenges were encountered in digital education provision (check all that apply)? [Lack of digital skills development for meaningful use of digital technology in teaching practice]

No

- What challenges were encountered in digital education provision (check all that apply)? [Disjointed or fragmented solutions that are not centrally systematized or regulated]

No

- What challenges were encountered in digital education provision (check all that apply)? [Other]

- Please elaborate. Brief quantitative information may be added.

Limited access to the Internet or electricity

In the state of health emergency, the IEST modify the modality of their educational service from face-to-face to blended and/or distance, in which it has been identified that in some regions they do not have access to the internet, also at the level of students and teachers.

4. Strengthening governance systems

- Please indicate the measures taken in terms of governance (several items may be ticked): [Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.]

No

- Please indicate the measures taken in terms of governance (several items may be ticked): [Monitoring results are made public]

No

- Please indicate the measures taken in terms of governance (several items may be ticked): [Monitoring processes are participatory, inclusive and regular.]

No

- Please indicate the measures taken in terms of governance (several items may be ticked): [Sector-wide and multisector approach is adopted to education governance.]

Yes

- Please indicate the measures taken in terms of governance (several items may be ticked): [Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.]

No

- Please indicate the measures taken in terms of governance (several items may be ticked): [The decision-making process for the allocation of resources to education is transparent.]

No

- Please indicate the measures taken in terms of governance (several items may be ticked): [Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.]

No

- Please indicate the measures taken in terms of governance (several items may be ticked): [There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.]

Yes

- Please elaborate. Brief quantitative information may be added.

The Minedu approved, in March 2019, through Vice-Ministerial Resolution No. 064-2019-MINEDU, the Technical Standard called "Provisions that define, structure and organize the process of Optimization of the educational offer of public technological higher education." The Optimization of the educational offer constitutes an improvement process that seeks to increase the efficiency and effectiveness of the provision of the public technological higher education service. This process is led by the Regional Governments, through their Regional Education Directorates/Managements, with the technical assistance of the Ministry of Education, through the General Directorate of Technical-Productive and Higher Technological and Artistic Education (DIGESUTPA). This process is implemented in a gradual and orderly manner in all regions of the country.

The Optimization process consists of 04 stages: 1) diagnosis of the regional technological higher educational offer, which include sustainability and relevance studies; 2) decision making for the modernization, expansion and/or reduction of the educational offer, 3) preparation of the Optimization Plan; e 4) implementation and monitoring. It should be noted that the Optimization Plan contains the regional licensing schedule for public IESTs. The Optimization process seeks to improve the quality, sustainability and relevance in 343 public IESTs nationwide, impacting the technological higher education of 120 thousand students of these institutions.

As of June 2024, 26 regions have an Optimization plan approved by the Minedu. In this document, the regions have planned the actions and programmed the resources to close gaps in basic quality conditions with a view to licensing, according to the established schedule.

Through the DIGESUTPA Optimization and Strengthening team, technical assistance is provided to public IESTs to close gaps in the basic quality conditions (CBC) with a view to institutional licensing, with the aim that the offer is sustainable, relevant and consistent with regional social, productive and economic development. The Strategy for Strengthening the public offering prioritizes those institutes according to the licensing schedule, that is, those that will be presented soon.

- What challenges were encountered in terms of governance? [Budgetary constraints]

No

- What challenges were encountered in terms of governance? [Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels]

No

- What challenges were encountered in terms of governance? [Poor dialogue with teachers' trade unions]
No
- What challenges were encountered in terms of governance? [Absence of supportive/ inconsistent/obsolete legal and policy environment]
No
- What challenges were encountered in terms of governance? [Lack or weakness of monitoring systems – including the lack of reliable data]
No
- What challenges were encountered in terms of governance? [Other]
Constantly changing authorities
- Please elaborate. Brief quantitative information may be added.
The change of authorities is very recurrent in the DRE/GRE which, on some occasions, do not have information about the Optimization process. Likewise, in some regions, the weak commitment on the part of the authorities in the field of Higher Technological Education is evident, causing the non-prioritization of resources to close gaps in basic quality conditions, which translates into delays in the execution of the projects. investment projects (including IOARR).

III. Methods used to draw the attention of the various authorities in the country to the instruments

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked) [Translation of the Convention/Recommendation into the national and possibly local languages]
No
- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked) [Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources]
No
- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked) [Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments]
No
- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked) [Other]